

Supply Agreement

between

**Syngenta Crop Protection Limited
Syngenta Seeds (Thailand) Limited**

and

Rocket Innovation Company Limited

for the provision of Eco grower data and engagement platform

and

effective on January 1st, 2025



Contract Management Ref.: <Insert ECM reference>

This Agreement ("**Agreement**" or "**Contract**") for the provision of Eco grower data and engagement platform is between

Syngenta Crop Protection Limited and Syngenta Seeds (Thailand) Limited, a corporation organized under the laws of Thailand with registered office at 25th Floor, Tower A, CW Tower, 90 Ratchadapisek Road, Huai Khwang Sub-District Huai Khwang District, Bangkok, Thailand. ("**Syngenta**", which term shall include its successors and permitted assigns)

And

Rocket Innovation Company Limited, a corporation organized under the laws of Thailand with offices at 5th Floor, Mobicom 3 Building, 101 Soi Phrapinit, Naradhiwas Road, Sathorn, Bangkok 10120, Thailand ("**Supplier**", which term shall include its successors and permitted assigns).

1. Definitions and Interpretation

In this Agreement the following definitions apply:

"Acceptance" means acceptance by Syngenta of the Service and/or Products in accordance with the Acceptance Procedure;

"Affiliate(s)" shall mean, with respect to a Party to this Agreement, another legal entity controlling, controlled by or under ultimate common control with such Party. Control shall mean, in this context, that the controlling entity has the power, directly or indirectly by means of voting power, contract or otherwise, to govern the operating and financial policies of the controlled entity;

"Agreement" shall mean this supply agreement including any and all exhibits and any and all the SOW's concluded under this supply agreement;

"Body Leasing Services" shall mean the provision by Supplier of staff / employees / personnel resources under the guidance and instruction of Syngenta at Syngenta's premises;

"Charges" means the Fees and Expenses;

"Confidential Information" shall have the meaning assigned to it in Section 8 and Exhibit C;

"Delivery Date" shall have the meaning assigned to it in Section 6.2;

"Expenses" means travel, accommodation and out of pocket expenses set out in more detail in the SOW and any other expenses agreed in advance and in written by the Supplier and Syngenta;

"Fees" means the fees referred to in clause 4.1;

"Intellectual Property Rights" shall mean all intellectual property rights, including patents, utility models, trade and service marks, trade or business names, domain names, rights in designs, copyrights, moral rights,

topography rights, database rights, trade secrets and rights of confidence, know-how, in all cases whether or not registered or registrable in any country, for the full term of such rights including any extension to or renewal of the terms of such rights, rights to apply for the same and all rights and forms of protection of a similar nature or having equivalent or similar effect to any of these anywhere in the world;

“Local Agreement” shall have the meaning assigned to it in Section 14.1;

“Party” and **“Parties”** shall mean Syngenta or/and Supplier;

“Personnel”, with respect to an entity, the employees, agents, contractors, and representatives of such entity and its subcontractors, whether or not Affiliates of such entity;

“Products” shall mean such Products as described in the relevant SOW, but in any case all materials and products resulting from or in relation to the Products and/or Services to be provided or developed under this Agreement, or otherwise provided by Supplier under this Agreement;

“Pre-existing Material” shall have the meaning assigned to it in Section 5.5;

“Results” shall have the meaning assigned to it in Section 5.2;

“Service(s)” shall mean any of the Services as described in the relevant SOW;

“SOW” shall mean any statement of works between Supplier and Syngenta or a Syngenta Affiliate based on the template set out in Exhibit A or any other format and which includes the terms and conditions of this Agreement by reference;

“VAT” shall mean Value Added Tax, Goods and Services Tax or any other similar Sales Tax.

“Withholding Tax(es)” shall mean amounts which Syngenta is legally required to deduct from the payment and pay directly to the government.

2. Components of this Agreement

The following documents form integral parts of this Agreement:

This Agreement and its exhibits, including:

- Exhibit A: Statement(s) of Work and / or Local Agreement(s)
- Exhibit B: The Charge and Payment
- Exhibit C: KPI
- Exhibit D: Project Timeline
- Exhibit E: Syngenta Policy: “Compliance: A guide for third parties “
- Exhibit F: Non-Disclosure Agreement
- Exhibit G: Data Protection

In the case of any discrepancies, the following order of precedence in descending order shall apply in the interpretation of this Agreement and any Statement of Work under it:

- The relevant SOW
- Exhibits to the relevant SOW

- This Agreement
- Exhibits to this Agreement

Conditions which differ from, or are additional to, this Agreement - in particular the general terms and conditions of the Supplier or of Supplier Affiliate(s) or of any other contracting party - are applicable only to the extent that they have been explicitly agreed in writing by Syngenta.

3. Provision of Products and/or Services

- 3.1. Supplier shall provide the Products and/or Services as described in the relevant SOW and in line with the provisions of this Agreement and the Exhibits and as instructed in writing by Syngenta. Where so agreed in the respective SOW, the Acceptance Procedure as described in the respective SOW shall apply to the Services and/or Products.
- 3.2. This Agreement does not grant to Supplier any exclusivity with respect to the provision of any Products and/or Services and Supplier agrees and acknowledges that Syngenta may, in its sole discretion, appoint third parties to provide similar Products and/or Services.
- 3.3. The Parties shall closely cooperate in order to enable the Supplier to provide the Products and/or Services and each Party shall appoint a Project Manager in the SOW as relevant. Supplier shall periodically inform Syngenta on ways to improve the Products and/or Services. Syngenta shall have the right to periodically audit and or benchmark the Products and/or Services of the Supplier as agreed in this Agreement and/or a SOW.
- 3.4. Supplier shall not act on behalf of Syngenta or any of its Affiliates or in any way bind Syngenta or its Affiliates, nor do anything likely to cause Supplier to be taken by third parties as acting as an agent or on behalf of Syngenta or its Affiliates, except with the specific prior written authorization of Syngenta.
- 3.5. Supplier agrees not to assign such employees of the Supplier who are currently engaged in the provision of particular Products and/or Services to Syngenta or its Affiliates to work in the same field for any direct competitor of Syngenta at the same time as they are providing Products and/or Services for Syngenta or its Affiliates.

4. Remuneration

- 4.1. For the provision of all Services and/or Products in connection with the relevant SOW, Syngenta shall pay to the Supplier the Fees agreed in the relevant SOW.
- 4.2. In addition to the agreed Fees, Syngenta shall reimburse Supplier for the Expenses as the Parties have agreed in advance and which Supplier reasonably has to incur in order to properly provide the Products and/or Services. Such Expenses shall be incurred in line with the principles of Syngenta's travel policy as outlined in a respective SOW. Supplier shall always seek the prior written approval from Syngenta of such Expenses.
- 4.3. Supplier shall be responsible for all taxes, contributions, charges and other public dues levied upon Supplier in connection with the provision of the Products and/or Services under an SOW hereunder, including but not limited any of the following in relation to the workforce of the Supplier:

- Statutory employment benefits and allowances etc.,
- Payments for holidays and public holidays,
- Payments for absences due to sickness, accident, pregnancy, motherhood, military services, etc.

For the avoidance of doubt, Withholding Taxes related to invoices of the Supplier and paid by Syngenta and its Affiliates to the government are not "taxes levied upon Supplier" under this Section 4.3.

- 4.4. The Charges (Fees and the Expenses) shall be invoiced by Supplier at such dates as the Parties have agreed in the relevant SOW. All amounts mentioned in this Agreement are exclusive of any VAT, which if applicable, will be added on top of the Charges stipulated in this Agreement and/or the relevant SOW.
- 4.5. Any invoice for Expenses shall be invoiced at cost (net of VAT if such VAT is recoverable by the Supplier), accompanied by such receipts (or copies of receipts, if originals are required to remain with the Supplier due to local in-country accounting requirements) and further details as Syngenta may reasonably request.
- 4.6. All undisputed invoices shall be payable by Syngenta within 45 (forty-five) days after receipt of the respective invoice.

5. Ownership of Results

- 5.1. Except as expressly stated in this Agreement nothing contained herein shall be construed as Syngenta granting Supplier, either expressly or implied, any right or license in Intellectual Property rights belonging to Syngenta or its respective Affiliate.
- 5.2. Subject to clause 5.5, unless otherwise explicitly agreed in a SOW, any and all studies, analyses, creative materials, reports, inventions, improvements, documents, and any other work product generated by Supplier in connection with the provision of the Services and/or Products under a particular SOW, and all Intellectual Property Rights therein (collectively, the "**Results**"), shall be the exclusive property of Syngenta. Upon request of Syngenta, Supplier shall transfer all such Results to Syngenta free of charge.
- 5.3. To the extent any mandatory legal rules under national or international legal order should provide that any Results made by Supplier belong to Supplier, its employees, agents, contractors or subcontractors, Supplier undertakes to assign or have assigned and transfer ownership to all such Results exclusively to Syngenta, at no cost to Syngenta, and to execute or have executed such documents and do or have done such other acts as are required therefore.
- 5.4. To the extent an assignment of the Results in accordance with clause 5.3 should not be feasible, Supplier grants Syngenta a royalty-free, perpetual, exclusive, transferable, sub-licensable, irrevocable and world-wide license to use, copy, modify, distribute, display, broadcast and create derivative works of such Results. Such derivative works will be owned by Syngenta. To the extent necessary for the usage of such derivative works, Supplier hereby grants to Syngenta a royalty-free, perpetual, exclusive, transferable, sub-licensable, irrevocable and world-wide license to use, copy, modify, distribute, display or broadcast such derivative works.
- 5.5. For the avoidance of doubt, the Parties understand that all Intellectual Property Rights of Supplier existing as of the date of this Agreement as well as all amendments to these during the term of this Agreement (e.g. methodologies, concepts or know-how of Supplier), which do not constitute Results (collectively, the "**Pre-existing Material**"), shall be and remain the sole property of Supplier. To the extent the Pre-existing

Material is required for Syngenta's use in the project, of the Results, Services and/or Products in accordance with the term of this Agreement, Supplier grants to Syngenta and Syngenta Affiliate(s) a royalty-free, perpetual, exclusive, transferable, sub-licensable, irrevocable and world-wide license to use, copy, modify, distribute, display, broadcast and create derivative works of such Pre-existing Material, including the right to have third parties do any of the foregoing.

6. Warranty and Indemnity

- 6.1. The Supplier warrants and represents that the Products will meet good industry standards and/or the specifications agreed in a SOW and that the Services will be provided with all due care, skill, judgment and diligence and in a professional manner and in accordance with good industry standards and practices at the time of entering into the respective SOW as well as the Supplier's own standards and practices and any additional standards and practices or instructions by Syngenta as explicitly agreed in a SOW.
- 6.2. Syngenta evaluates the Products and/or Services in relation to each SOW and Supplier agrees to correct free of charge and in a reasonable timeline as defined by Syngenta, any defects in the Products and/or Services notified by Syngenta within 2 (two) years from the Delivery Date any defects of the Product and/or in the provision of the Services respectively and which either become apparent to Supplier or which are notified to the Supplier by Syngenta or its respective Affiliate. "**Delivery Date**" shall either be (i) the date of acceptance of the respective Product and/or Service, or (ii) if the acceptance procedure was not applicable, the date of the last provision/delivery of a respective Product and/or Service (in case that several SOW's are required to provide/deliver a respective Product and/or Service, the last SOW shall be relevant to determine the respective date).
- 6.3. After the expiry of the warranty period, Supplier shall continue to be liable for hidden defects. Syngenta shall notify Supplier of any hidden defects promptly after they have been detected. The rights of Syngenta in respect of hidden defects shall become time-barred 5 (five) years after the Delivery Date.
- 6.4. If Supplier is unable to cure any defect in accordance with Section 6.2, Syngenta shall have at its sole discretion the option, by giving Supplier written notice (including e-mail, Fax etc.), notwithstanding any other rights or remedies that may be available to Syngenta under the SOW or otherwise, to apply one or more of the following remedies as appropriate:
 - a) require the Supplier, at Supplier's cost and expense, to continue to promptly remedy any defect or to re-perform or re-deliver the Services and/or the Products giving rise to the breach in an additional deadline;
 - b) at Supplier's cost to either remedy any defect or perform any non-conforming Services itself or to have them remedied or performed by a third party;
 - c) to request adequate reduction of the remuneration or refund of part of the payments made in consideration of the reduced value of the Services and/or Products due to their defectiveness or to the undue performance of the relating Services and/or Products to be provided under the respective SOW.
 - d) In case of material defects: rescind the respective SOW on written notice to the Supplier, as a result of which Supplier shall be obliged to promptly reimburse all remuneration already paid by Syngenta relating to such SOW.

- 6.5. Supplier warrants that the Results and the Products and/or Services (rendered by the Supplier to Syngenta under this Agreement) are free of third party rights which might exclude or impact their use by Syngenta.
- 6.6. Supplier shall indemnify and hold harmless, including payment of all damages, costs, expenses (including reasonable court charges and attorney fees) and losses, howsoever arising incurred by Syngenta to the extent any third party alleges that any of the Products and/or Services used by Syngenta in accordance with this Agreement and the applicable SOW's infringes any of its Intellectual Property Rights (a "Claim"), provided that: (i) Supplier is given written notice of the Claim by Syngenta, (ii) Supplier is given all reasonable information and assistance from Syngenta, which Supplier may require to defend the Claim, (iii) Supplier is, to the extent permissible by law, given sole control of the defence of the Claim, and all negotiations for its settlement or compromise thereof; and (iv) the alleged infringement does not result exclusively from any non-permitted uses, alterations, modifications or enhancements carried out by Syngenta or on its behalf by a third party. If such Claim has occurred, or in Supplier's opinion is likely to occur, Syngenta agrees to permit Supplier, at Supplier's sole option and expense, either to procure for Syngenta the right to continue using the Services and/or Products or to replace or modify the same so that it becomes non-infringing without loss of functionality, or if none of the foregoing alternatives is reasonably available, refund to Syngenta any Charges paid by Syngenta to the Supplier in respect of the respective Services and/or Products. For avoidance of doubt, the Parties acknowledge and agree this Supplier's potential liability is uncapped.

7. Liability

- 7.1. Supplier is liable for damages based on wilful misconduct or gross negligence without limitation.
- 7.2. In case of light and medium negligence, Supplier shall be liable for any damages up to two times the aggregate of all Charges due under the respective SOW (or SOWs if there is a functional relation between several SOW's). The liability for personal and property damages as well as violations of Supplier's duties regarding confidentiality and data privacy shall be unlimited.

8. Confidentiality

- 8.1. The Parties undertake to comply with their respective duties as set forth in Exhibit C hereto.

9. Data Protection

- 9.1. The Parties undertake to comply with their respective duties as set forth in Exhibit D hereto.

10. Insurance

- 10.1. Supplier shall be obliged to conclude, procure and maintain with a duly licensed insurance company a professional indemnity and product liability insurance policy as well as all other insurances that may be relevant for providing the Products and/or Services provided under a respective SOW.

Syngenta may demand at any time a proof of this insurance coverage, including an indication of the amount insured.

11. Taxes

- 11.1. Notwithstanding anything to the contrary herein, if there should be any Withholding Tax imposed by the applicable jurisdictions on Supplier with respect to any payments to be made by Syngenta to the Supplier under or in connection with this Agreement, Syngenta is allowed to deduct such Withholding Taxes from the payments to the Supplier and pay such Withholding Taxes to the appropriate tax authorities on behalf of the Supplier. Regarding the discharged Withholding Tax, Syngenta will submit to the Supplier the corresponding original tax certificates or original tax receipts stamped by the receiving local tax authority within 30 days after such withholding obligation is discharged. Notwithstanding the foregoing, upon presentation by the Supplier to Syngenta of the relevant tax documentation indicating a reduction in or exemption from Withholding Tax for the Supplier in such taxing jurisdiction pursuant to the provisions of the relevant double taxation treaty, Syngenta shall withhold such tax at the reduced rate (or not withhold any tax if there is an exemption).

12. Term & Termination

- 12.1. This Agreement shall become effective from the date stipulated on the front page of this Agreement or in a respective SOW (Effective Date) and shall expire [1] year after the Effective date unless extended in writing or unless due to the nature of the product provided (e.g. one time purchase) such term is not meaningful or unless it is terminated prior to such term in accordance with this section 12.
- 12.2. If either Party is in material or persistent non-material breach of its obligations under the Agreement and/or any SOW and shall fail to remedy the same after receiving a 30 days' notice from the non-breaching Party specifying the breach and requiring its remedy, then the non-breaching Party shall be entitled to terminate the Agreement and/or SOW with immediate effect. This right includes but is not limited to a termination as per 6.4.
- 12.3. Syngenta may terminate this Agreement by giving 3 (three) months and/or any SOW by giving 1 (one) month's written notice to the end of any month.
- 12.4. Non-completed SOW's shall not be affected by the termination of this Agreement.
- 12.5. The following provisions will survive any termination or expiration of this Agreement: 4 ("Remuneration"), 5 ("Ownership in Results"), 6 ("Warranty and Indemnity"), 7 ("Liability"), 8 ("Confidentiality"), 9 ("Data Protection") and 21 ("Law and Jurisdiction").

13. Force Majeure

- 13.1. Neither Party to this Agreement or to an SOW shall be deemed to be in breach or otherwise liable as a result of any delay or failure in the performance of its obligations if and to the extent that such delay or failure is caused by Force Majeure (any unavoidable circumstance that is beyond the reasonable control of the Party) and the time for performance of the relevant obligation(s) shall be extended accordingly.
- 13.2. A Party whose performance of its obligations under this Agreement or any SOW is delayed or prevented by Force Majeure:
- a) shall notify in writing the other Party and keep the other Party at all times informed of the nature, extent, effect and likely duration of the circumstances constituting the Force Majeure;

- b) shall use all reasonable endeavours to prevent or minimise the effect of the Force Majeure on its performance of its obligations under this Agreement and any SOW including the making of any alternative arrangements for resuming the performance of its obligations which may be practicable; and
- c) shall after the cessation of the Force Majeure, notify the other Party thereof and resume full performance of its obligations under this Agreement and any SOW.

13.3. If Supplier is relieved from its obligations based on Force Majeure, then Syngenta shall be relieved from the corresponding payment obligations.

14. Affiliates

14.1. The Parties acknowledge that under this Agreement there may be various projects under which Supplier will provide Products and/or Services to Syngenta as well as to some of its Affiliates and that Syngenta is entitled to request Supplier to provide Products and / or Services to Affiliates based on this Agreement.

If the Parties agree that Supplier (or a Supplier Affiliate) shall provide Products and/or Services to a Syngenta Affiliate, then the respective Affiliates shall enter into agreements (i.e. agreements between the local Affiliate of Syngenta and the respective Affiliate of the Supplier, the “**Local Agreement**”) which may be in addition to or instead of a (local) SOW.

Such Local Agreement - and where applicable the local SOW - shall be substantially in the form as set out in Exhibit A and include the terms of this Agreement (and the global SOW, where applicable) by reference.

15. Subcontracting

- 15.1. Supplier shall not - without the express prior written consent of Syngenta, which may be withheld at Syngenta’s sole discretion - assign, sub-contract or otherwise delegate in any way the performance of any of its obligations under this Agreement and / or a respective SOW.
- 15.2. Supplier ensures that any contract with its authorized subcontractors is in compliance with the terms of this Agreement and /or a respective SOW and that such compliance can be audited. Notwithstanding any other provision of this Agreement, Supplier shall at all times be responsible and liable for the performance of its obligations under this Agreement, including any failure of any authorized Sub-Contractor or any authorized third party to perform Supplier’s obligations under this Agreement and / or a respective SOW.

16. Notices

16.1. All notices under this Agreement shall be made in writing and shall be deemed to have been properly received when delivered. Notices can also be sent by electronic means if and under the conditions agreed in a respective SOW.

Notices shall be sent to:

For Syngenta:

Ajjima Thinprapa
IT Lead, Thailand
Syngenta Crop Protection Limited

For Supplier:

Rangwan Dusdeesurapot
CEO
Rocket Innovation Company Limited

Syngenta Seeds (Thailand) Limited

17. Compliance / Audit

- 17.1. The Supplier is responsible for ensuring compliance with all applicable laws and regulations (including but not limited to national work rules). To the extent that it is relevant, Supplier will hold and maintain appropriate valid permits for its Personnel providing the Products or involved in delivering the Services, such as residence and work permits. Supplier will provide Syngenta with copies of such permits before such Personnel starts providing Products and/or Services or at any later time upon Syngenta's request.
- 17.2. Supplier shall adhere to all applicable Syngenta Policies (including but not limited to Exhibit B - Compliance: A guide for third parties). When accessing Syngenta's premises or (IT) systems Supplier will adhere to all respective policies (including but not limited to those related to HSE and IT security) communicated in writing to Supplier.
- 17.3. Supplier will keep accurate books and records in connection with the Services to be performed under this Agreement (including details of all payments made or received in connection with the performance of the services). Once every calendar year, Syngenta may conduct an audit of Supplier's books and records, IT systems, premises etc. relating to the Products and/or Services performed under this Agreement and/or a respective SOW. Syngenta shall be entitled at its own cost to delegate this task to a professional third party that is subject to similar confidentiality obligations as those agreed in this Agreement or a respective SOW.
- 17.4. Syngenta has committed to upholding the principles set out in the Universal Declaration of Human Rights of the United Nations and the International Labour Organisation's Core Conventions. In light of this, Syngenta requires all suppliers to comply with certain minimum labour standards, e.g. respecting employees' rights to become member of relevant labour unions and/or other employee organizations, not using forced labour nor exploitative child labour practices and not tolerating discrimination or harassment at the workplace. Supplier agrees to – and to have all agents, Sub-Contractors and Affiliates – comply at all times during the validity of this Agreement with these standards.
- 17.5. Supplier shall not pay, offer, promise, or authorize any payment or other advantage, whether directly or through intermediaries, to a public official or a business partner (individual, institution, commercial or non-profit organization etc.) to improperly obtain, retain or direct business or to secure any other improper advantage in the conduct of business in connection with the performance of this Agreement.
- 17.6. Supplier warrants that neither Supplier nor any owner, partner, officer, director or employee of Supplier or of any affiliate company nor any close relative of the foregoing is a public official (meaning any person holding an office or working for or on behalf of a government entity or government funded entity at any level) who is in a position to affect or influence the award of business or any other advantage to Syngenta during the term of this Agreement unless disclosed to Syngenta in advance and approved in writing. Supplier shall immediately notify Syngenta if a public official who is in a position to affect or influence the award of business or any other advantage to Syngenta becomes an officer or employee of Supplier or acquires a direct or indirect interest in Supplier during the term of this Agreement;
- 17.7. Supplier shall indemnify, defend and hold harmless Syngenta, its Affiliates, and their respective directors, officers, employees, agents, representatives, distributors, suppliers or customers from and against all losses, expenses (including reasonable attorney's charges), damages, fines, penalties, liability, judgments

and settlements suffered or incurred howsoever relating to, in connection with or arising as a result of Supplier's breach of or failure to perform its obligations with respect to compliance set out in Section 17. Any violation of Section 17 shall constitute a material breach of the Agreement / SOW and trigger the respective consequences.

- 17.8. Supplier can report any suspected violations of this section through Syngenta's Compliance Helpline, which can be accessed through the intranet at www.syngentacompliancehelpline.com

18. No Assignment

- 18.1. Neither Party shall assign any of its rights or obligations under this Agreement to any third party without the prior written consent of the other Party. Any assignment in violation of this clause shall be null and void. Notwithstanding the above, Syngenta shall be entitled to assign this Agreement to any of its Affiliates upon written notice of such assignment to Supplier.

19. Security Assessment

- 19.1. Supplier require to conduct vendor security assessment and AI assessment to comply Syngenta policy. in case, after completed assessment then there's request mitigation plan, vender shall support Syngenta to implement mitigation plan to reduce the risk

20. Miscellaneous

- 20.1. In the event that one or several of the provisions of this Agreement and/or a SOW are or become invalid or unenforceable, the remainder of this Agreement and/or a SOW shall not be affected. The Parties shall agree appropriate provisions to replace any invalid or unenforceable provisions, or fill an omission of this Agreement and/or a SOW by a valid provision which comes as close as possible to the commercial purposes both Parties intended with the initial provision or which corresponds to that commercial purpose which, according to the sense and purpose of this Agreement, the Parties would have intended, had they considered the matter.
- 20.2. Supplier shall be acting in the capacity of an independent contractor and nothing in this Agreement, or a SOW shall be construed as creating any contract of employment or the relationship of a joint venture of any kind between the Supplier and Syngenta, or its respective Affiliates, subcontractors or employees.
- 20.3. Neither Party shall use the other Party's names, logos or other trademarks in its marketing materials, on its web site, in press releases or for any similar purpose without the other Party's prior written consent.
- 20.4. This Agreement contains the entire agreement between the Parties concerning the subject matter hereof. No amendment, modification or discharge of this Agreement, including this sentence, and/or any SOW and no waiver hereunder shall be valid or binding unless set forth in writing and signed by the Parties hereto. Each Party agrees that no failure or delay by the other in exercising any right, power or privilege under this Agreement will operate as a waiver thereof, nor will any single or partial exercise thereof preclude any other or further exercise thereof or the exercise of any right under this Agreement.

21. This Agreement is drafted in the English language only.

22. Law and Jurisdiction

- 22.1. This Agreement and all claims or matters under or pursuant to it (including non-contractual disputes or claims) will be governed by the laws of Thailand.
- 22.2. 20.2. The Parties shall use their best efforts to resolve the dispute amicably; unless otherwise provided in this Agreement, if at the end of a 30 (thirty) days period, or such other period as shall be reasonable under the circumstances, an amicable settlement cannot be achieved, the dispute shall be solved at the court of Thailand .

By signing this document, Supplier confirms having received and read the following Exhibits:

- Exhibit A: Statement(s) of Work and / or Local Agreement(s)
- Exhibit B : The Charge and Payment
- Exhibit C : KPI
- Exhibit D : Project Timeline
- Exhibit E: Syngenta Policy: "Compliance: A guide for third parties "
- Exhibit F: Non-Disclosure Agreement
- Exhibit G: Data Protection

In witness whereof, the Parties have executed this Agreement into two (02) original copies of equal validity.

DS

Signed for and on behalf of Syngenta Crop Protection Limited and Syngenta Seeds (Thailand) Limited

Bangkok,



DocuSigned by:

Kluaymai Nuchniyom

77A8C2478AB445B...

Kluaymai Nuchniyom
Director 12/23/2024

Signed by:

Ai Sugimori

F58CCDB7C041460...

Ai Sugimori
Director 12/23/2024

DS

Signed by:

Pitsanu Apirajkamol

2761C5347FA54A0

Pitsanu Apirajkamol
Witness 12/23/2024

DocuSigned by:

บริษัท ซินเจนทา ซีดส์ (ประเทศไทย) จำกัด
Syngenta Seeds (Thailand) Limited

Ajjima Thinprapa

3137B6D7215344F...

Ajjima Thinprapa
Witness 12/22/2024

Signed for and on behalf of Rocket Innovation Company Limited

Bangkok,

DocuSigned by:

Rangwan Dusdeesurapot

B9BEE06DBC3A46B...

Rangwan Dusdeesurapot
CEO
12/23/2024

DS

rocket



Document history

Revision	Date	Short Description	Author(s)
V. 1.0	22/08/2014	Original version	Axel Ernst, Adrian Schaub
<Update version>	<DD/MM/YYYY>	<Description of the change>	<First and Last name>



Exhibit A1

Service(s) Statement of Work (SOW) / Local Agreement

Effective on January 1st, 2025

- 1. Rocket Proposal, Date 16th Dec 2024**

Section 2

Project Introduction

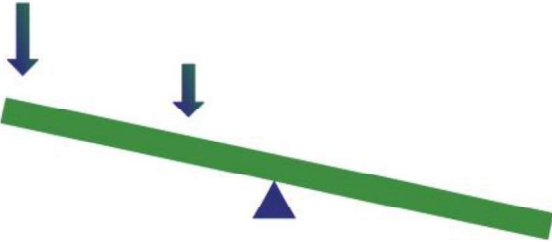
Rocket Loyalty CRM 4.0

Executive summary

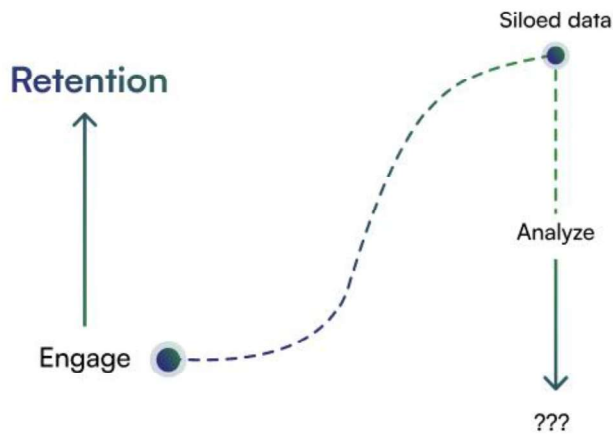
Objectives	Current state	Future state	Business impact
High-leverage loyalty program (data enrichment)	- Rewards for retention - Limited data collection	- Rewards for retention and data (data-driven campaigns) - Precise data acquisition	- Higher return for a loyalty dollar spent - Increase data volume & richness - Improved campaign targeting
360 degrees data platform	- Siloed data - Difficult to ask questions	Unified, actionable data in one plane	- Cross-domain collaboration - Reduce manual processes
Deep & actionable insight	- No data team - Limited feedback loop between data, loyalty and campaign teams - No flywheel	- Data team which sits alongside CRM team - Continuous feedback loop - High-frequency insights	- Faster time to insight - Faster decision making

Harness mechanical advantage in loyalty

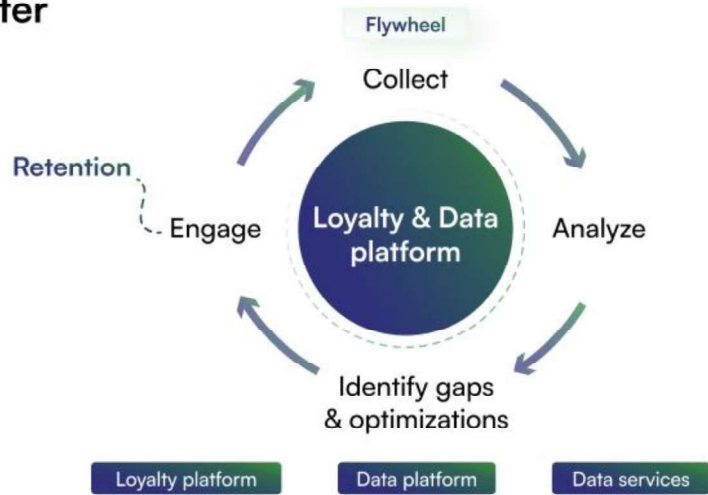
Create a program where engagement unlocks data, and data amplifies engagement & insight.



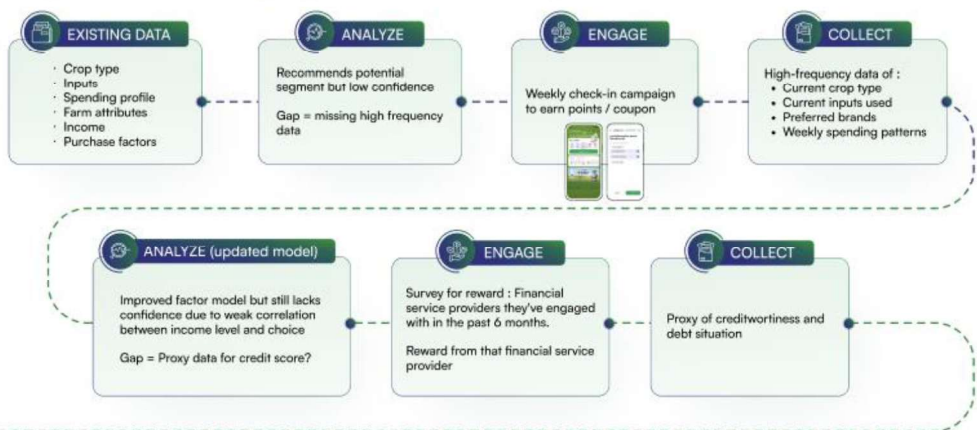
Before



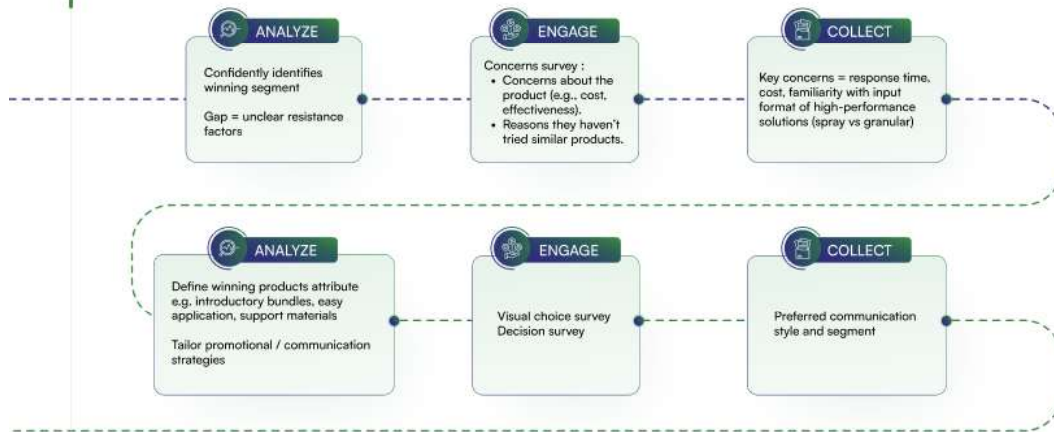
After



Flywheel - engagement & insights

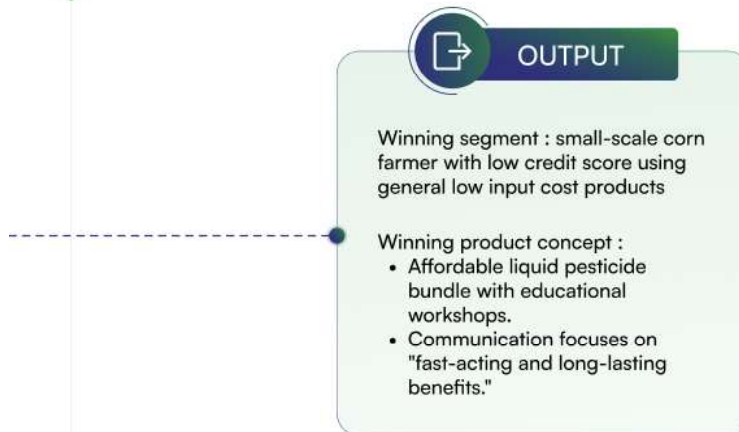


Flywheel - engagement & insights cont'd



Rocket Retention Ecosystem 4.0

Flywheel - engagement & insights cont'd



Rocket Retention Ecosystem 4.0

Example questions

- Which grower segments are most likely to switch from competitor products, considering factors such as pricing, product efficacy, and ease of application?
- What are the seasonal patterns in crop protection product usage, based on historical data and regional weather trends?
- Which combinations of products are most commonly purchased together by successful growers, based on transaction data?
- How does our product performance vary across regions, crop types, and pest issues, using data from field trials and grower feedback?
- Which dealer locations have the highest potential for growth, based on grower density and historical sales trends in their areas?
- How can stock levels at dealer locations be optimized, using predictive models based on weather patterns, crop cycles, and pest outbreak data?
- What is the ROI of past grower events, segmented by region and grower type, based on attendance and subsequent sales data?
- Which communication channels drive the highest event participation among growers, using engagement and response data from previous campaigns?
- How do growers' sustainability practices correlate with loyalty to our brand, using survey and transaction data?
- What impact do our products have on long-term yield performance, based on multi-year grower data and field studies?
- How can predictive analytics identify high-risk areas for pest outbreaks, using data from weather, soil conditions, and past campaigns?
- Which grower segments show declining purchase patterns, and what data-driven interventions can re-engage them?
- How do growers interact with our digital platforms, based on usage analytics and feedback data, and what changes can improve adoption?
- Which provinces or regions have untapped growth potential, using underutilized dealer network data and low product penetration rates?
- How does crop yield performance vary geographically, using insights from regional yield data and grower profiles?



Rocket Retention Ecosystem 4.0

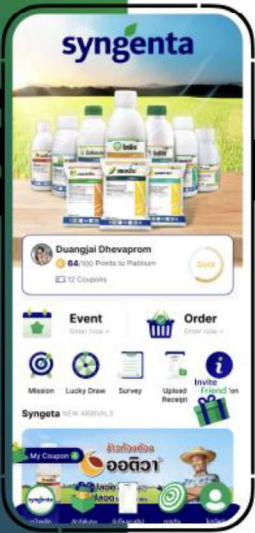
Section 3

Loyalty platform

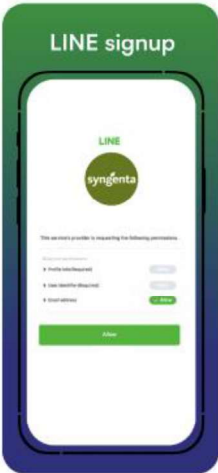
Rocket Retention Ecosystem 4.0

Section 3.1

Core Loyalty



Rocket Loyalty CRM 4.0

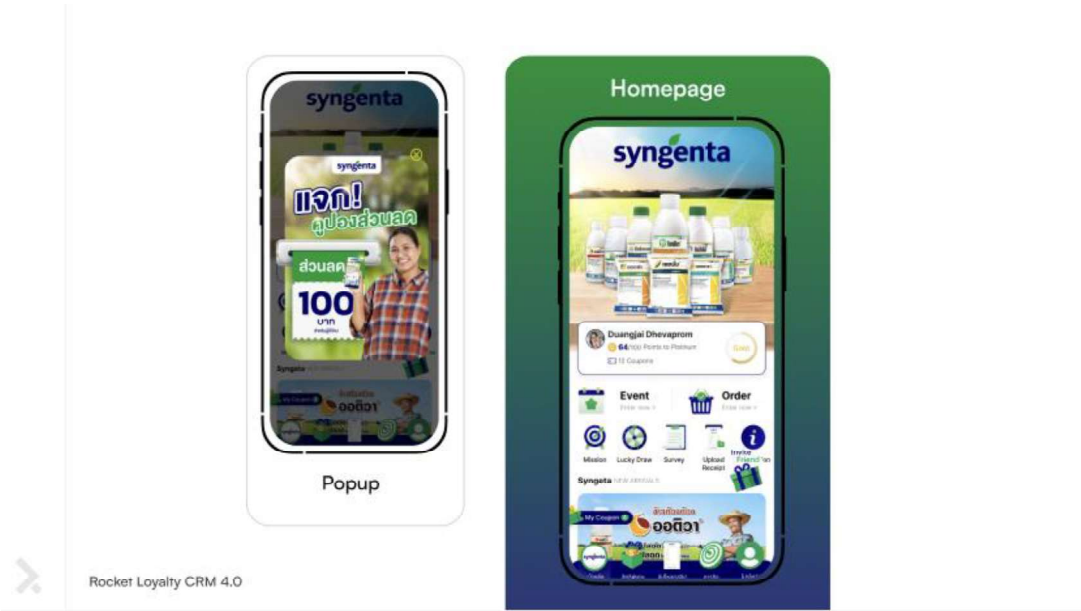




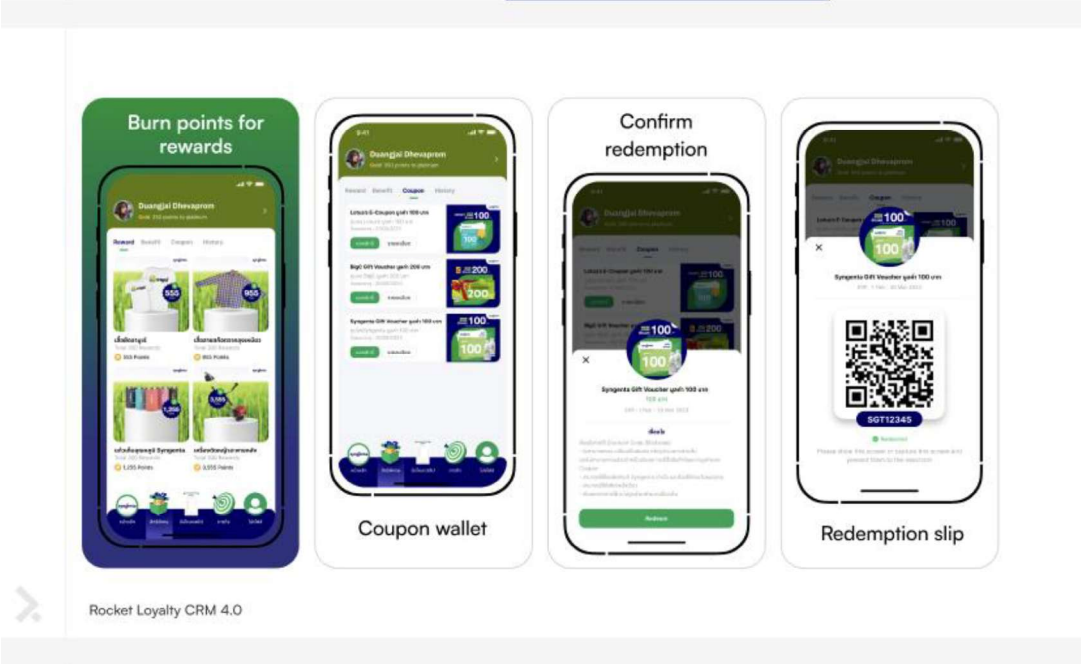




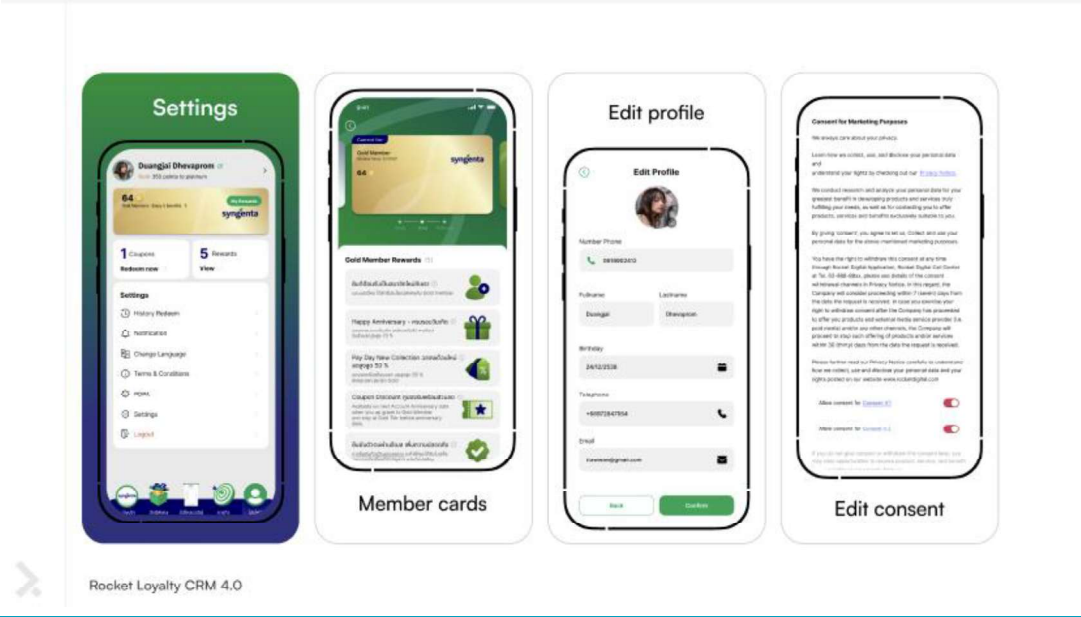
Rocket Loyalty CRM 4.0



Rocket Loyalty CRM 4.0

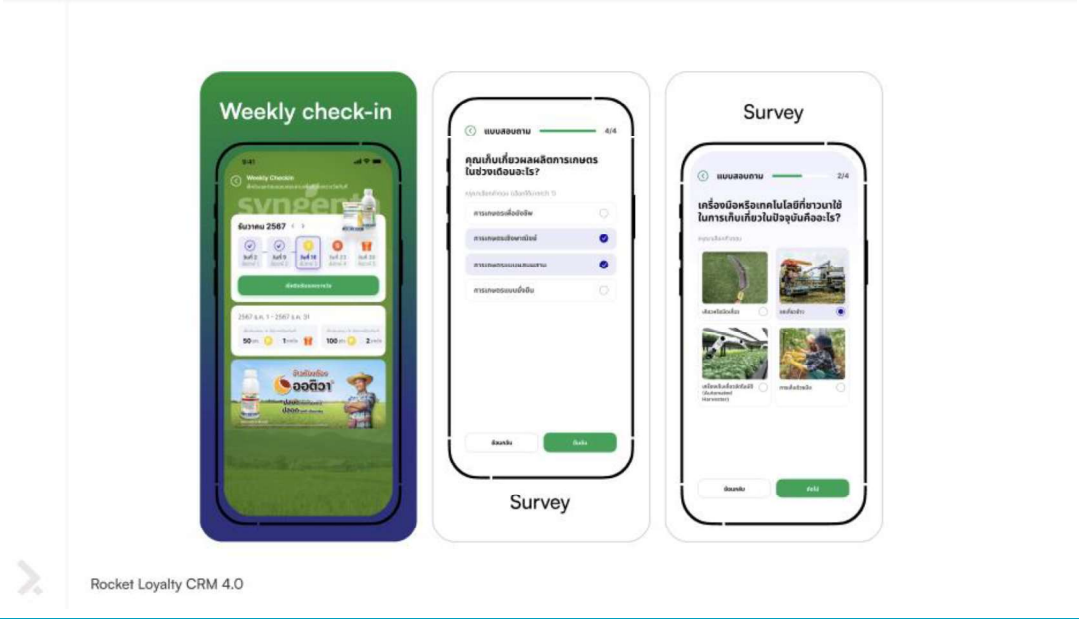
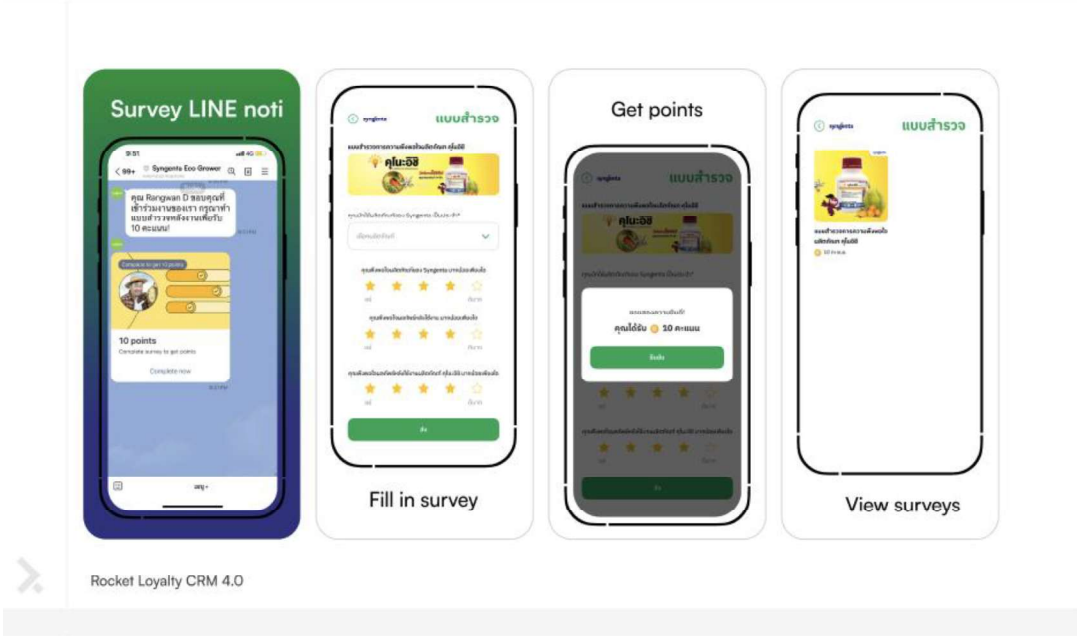
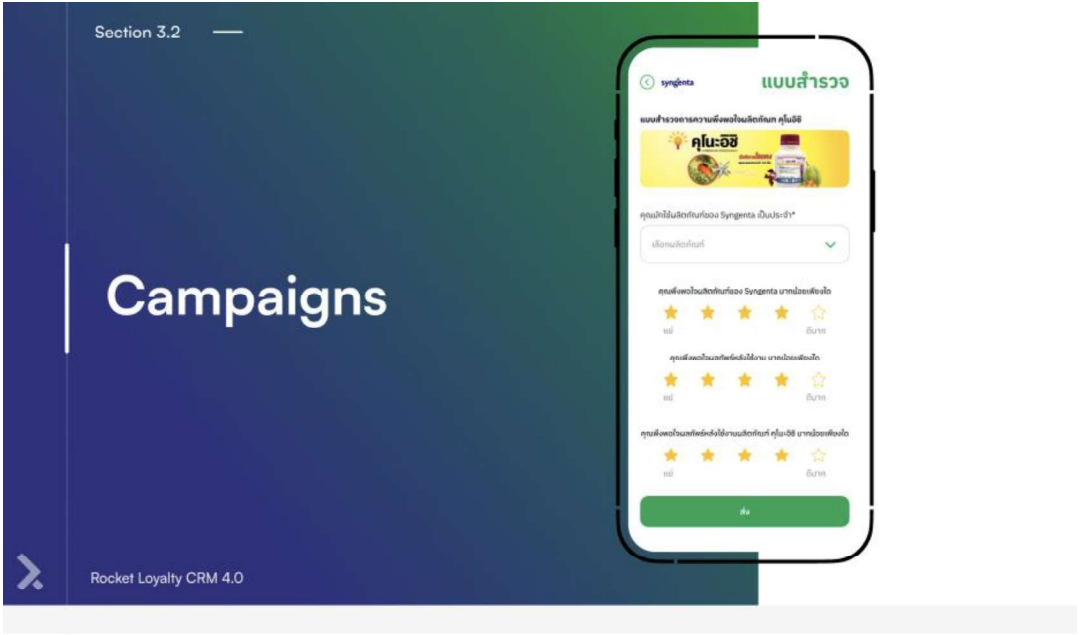


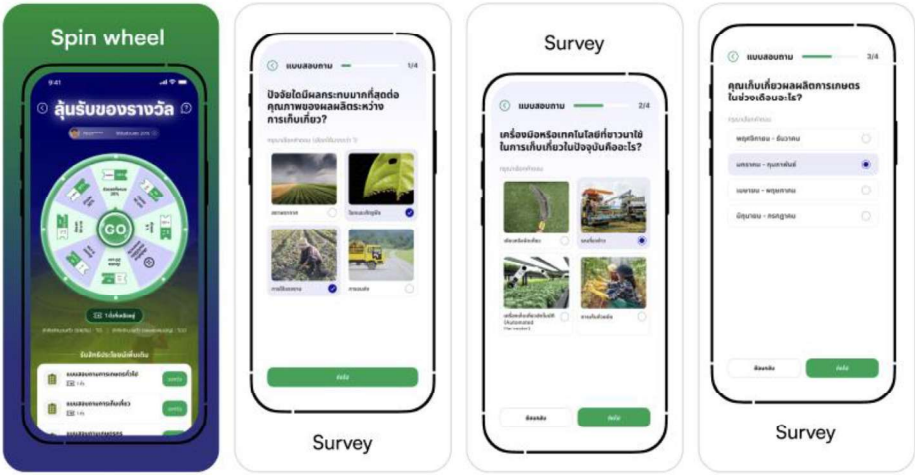
Rocket Loyalty CRM 4.0



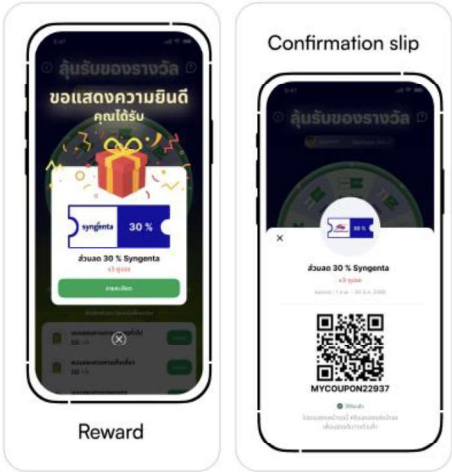
Rocket Loyalty CRM 4.0



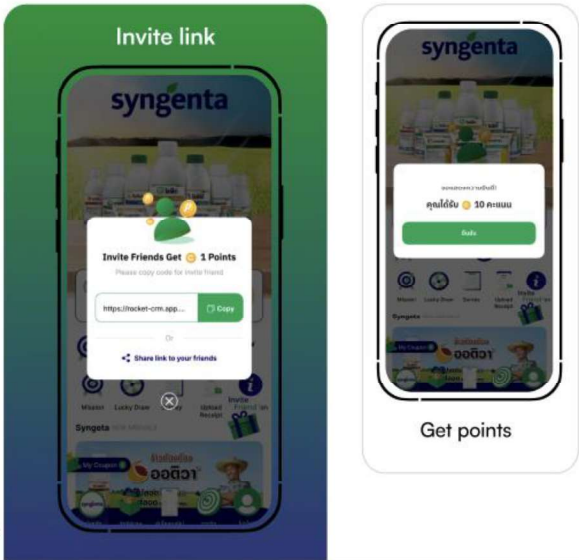




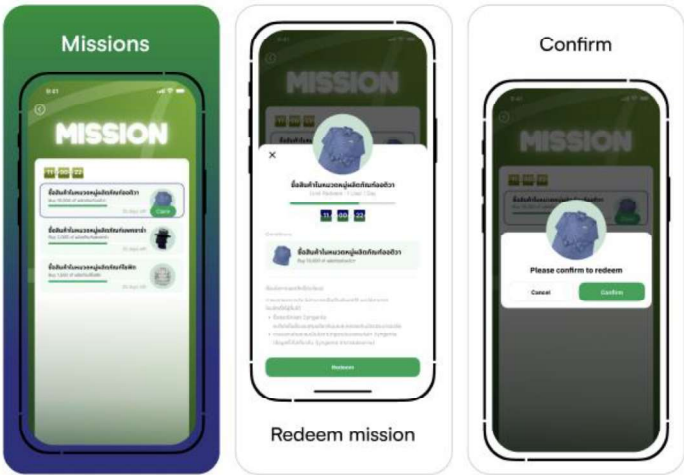
Rocket Loyalty CRM 4.0



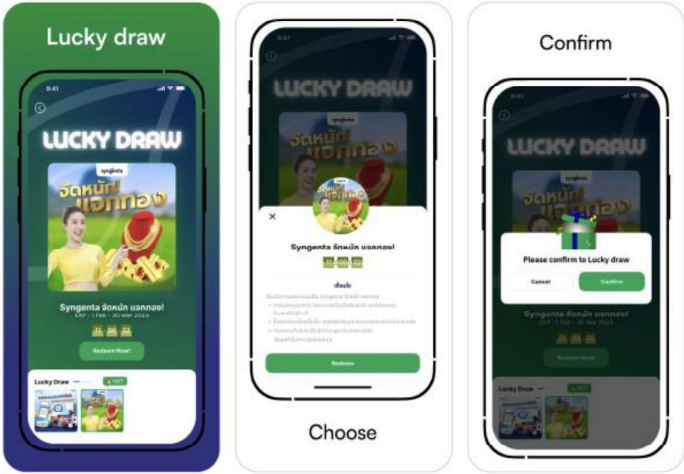
Rocket Loyalty CRM 4.0



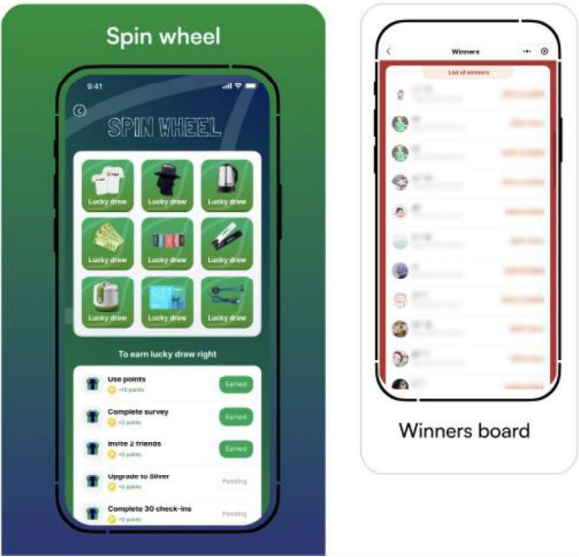
Rocket Loyalty CRM 4.0



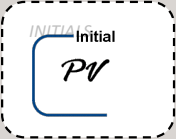
Rocket Loyalty CRM 4.0



Rocket Loyalty CRM 4.0



Rocket Loyalty CRM 4.0



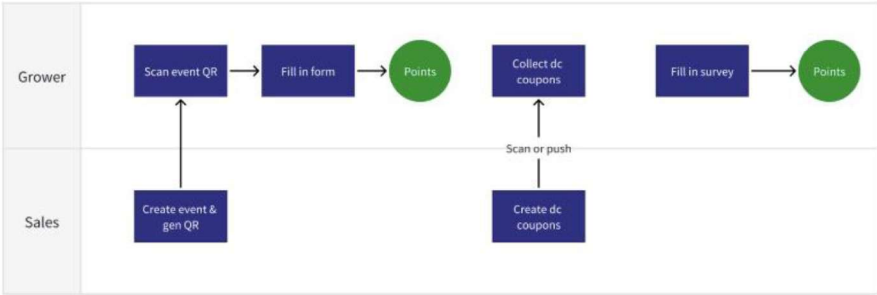
Section 3.3

Event registration



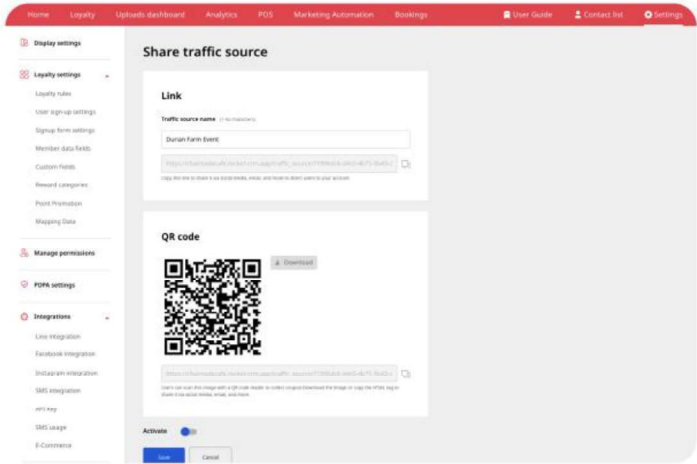
Rocket Loyalty CRM 4.0

High-level flow



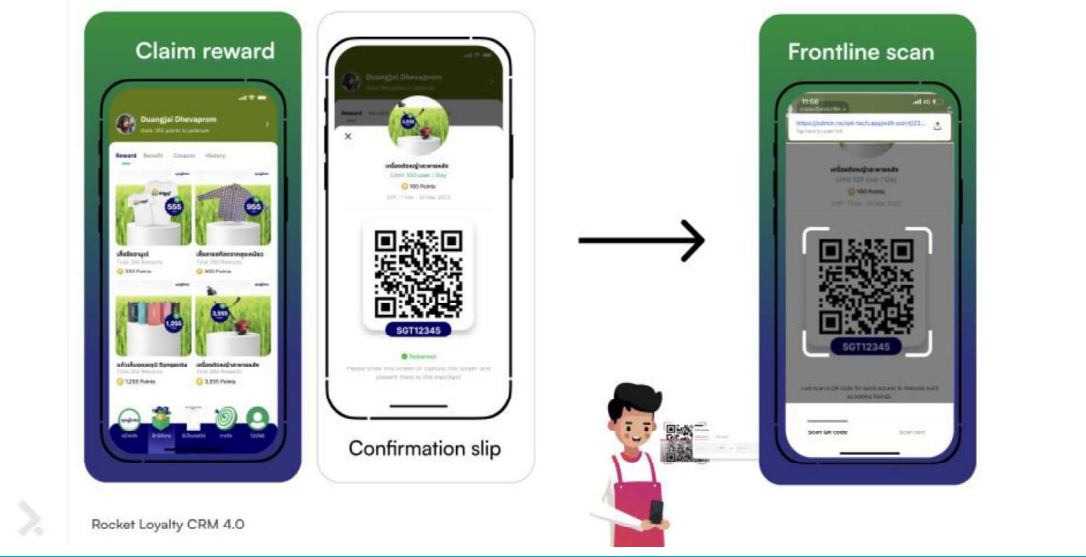
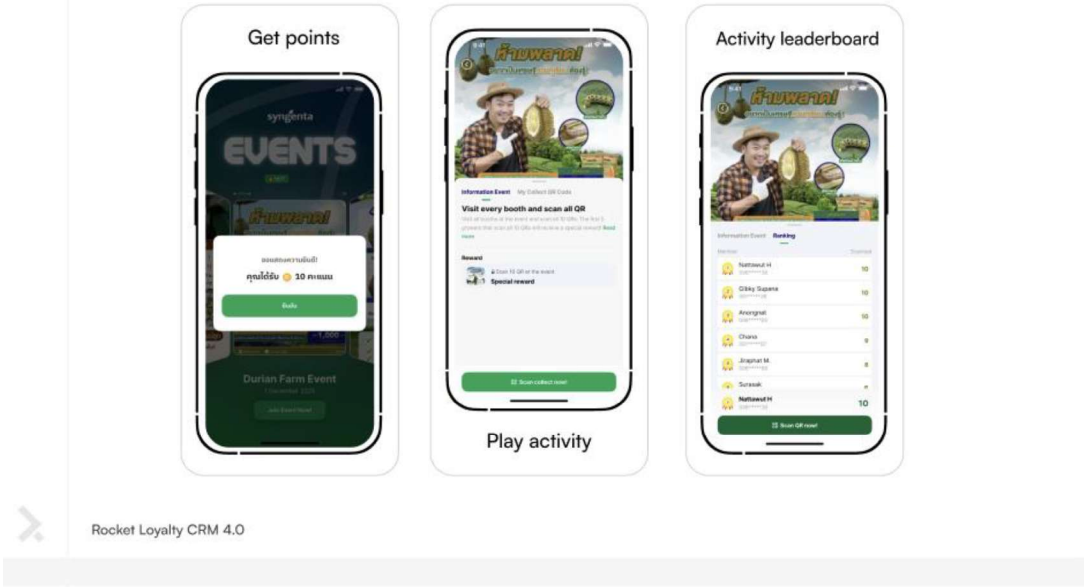
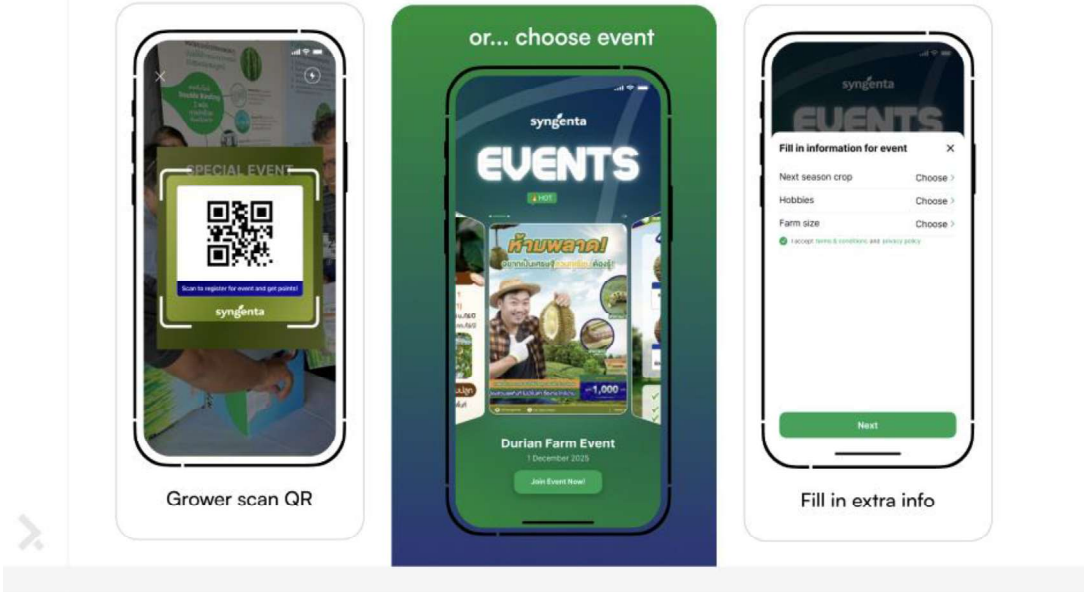
Rocket Loyalty CRM 4.0

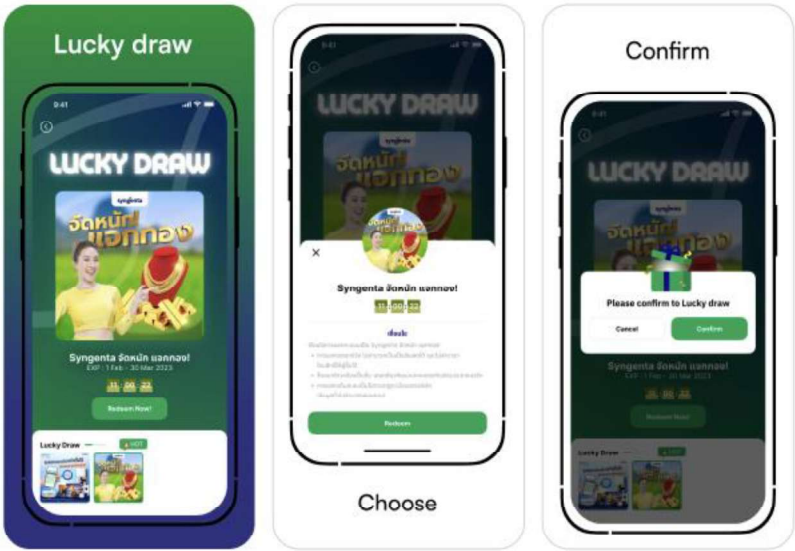
Admin / sales create event QR



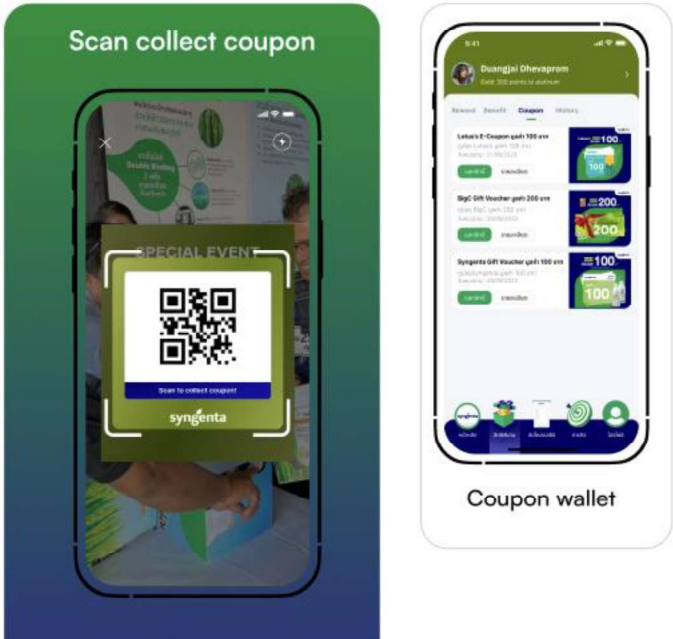
Rocket Loyalty CRM 4.0







Rocket Loyalty CRM 4.0



Rocket Loyalty CRM 4.0

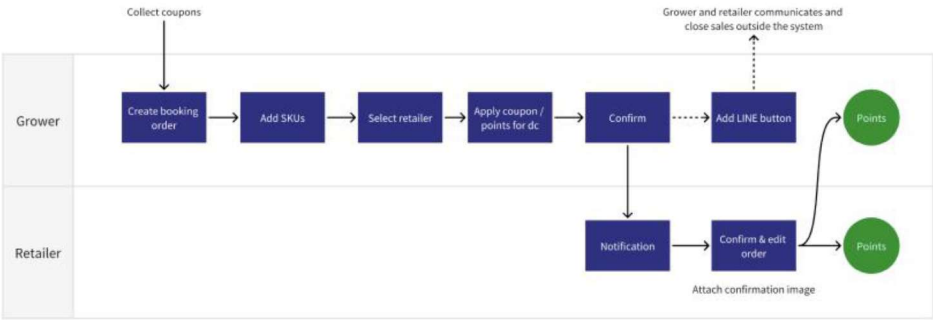
Section 3.4

Order booking
Phase 2

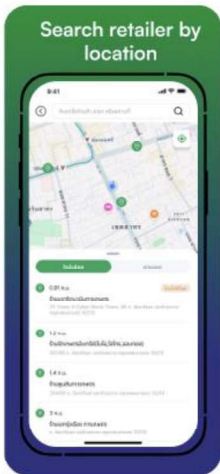


 Rocket Loyalty CRM 4.0

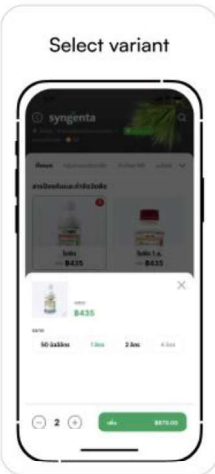
Order booking flow - Option 1
Grower creates order



 Rocket Loyalty CRM 4.0

 Search retailer by location

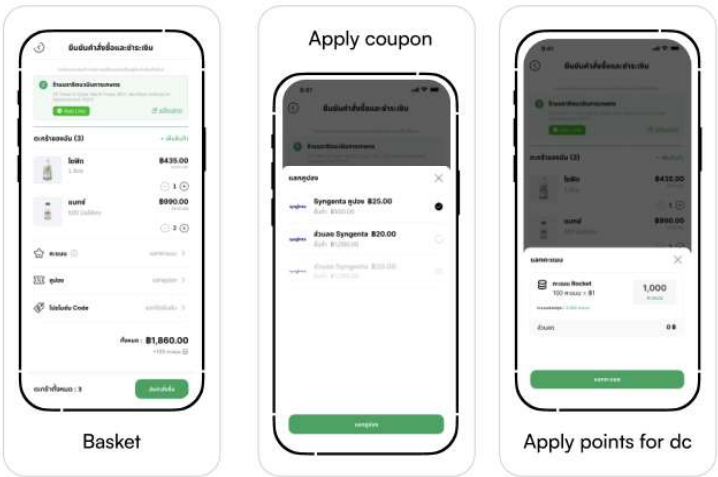
 Add SKUs

 Select variant

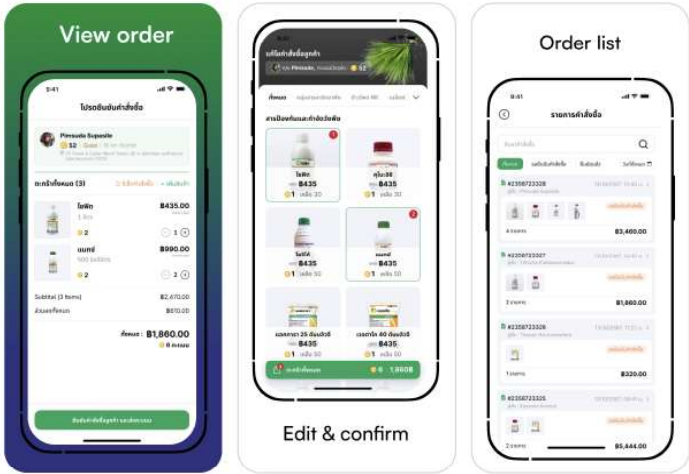


 Rocket Loyalty CRM 4.0



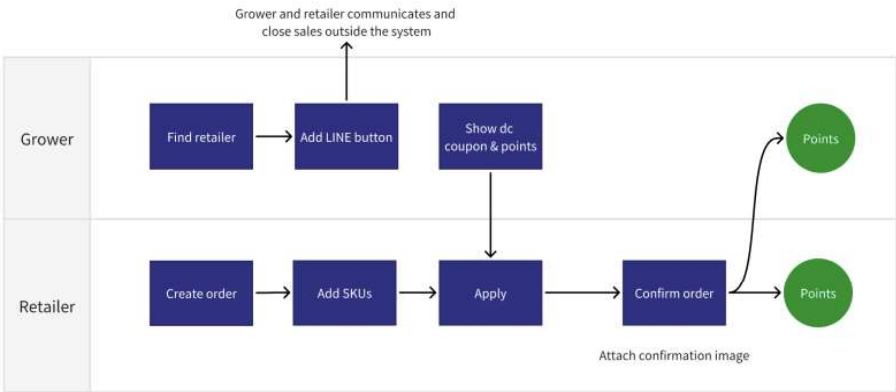


Rocket Loyalty CRM 4.0



Rocket Loyalty CRM 4.0

Order booking flow - Option 2
Retailer creates order



Rocket Loyalty CRM 4.0





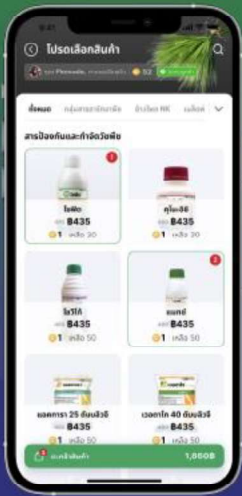
```

graph LR
    subgraph Grower
        FR[Find retailer] --> ALB[Add LINE button]
        ALB --> |Upward Arrow|
    end
    subgraph Retailer
        AC[Apply coupon] -- "Attach confirmation image" --> CO[Confirm order]
    end
    subgraph Admin
        A[Approve]
    end
    CO --> P((Points))
    A --> P
  
```

INITIALS Initial
PV

32

Track all digital footprints of purchase journey



Match retailer

Transaction complete

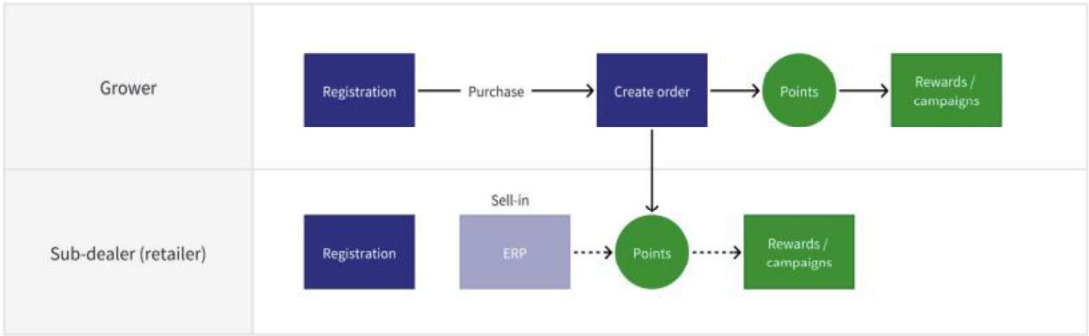
Coupon applied

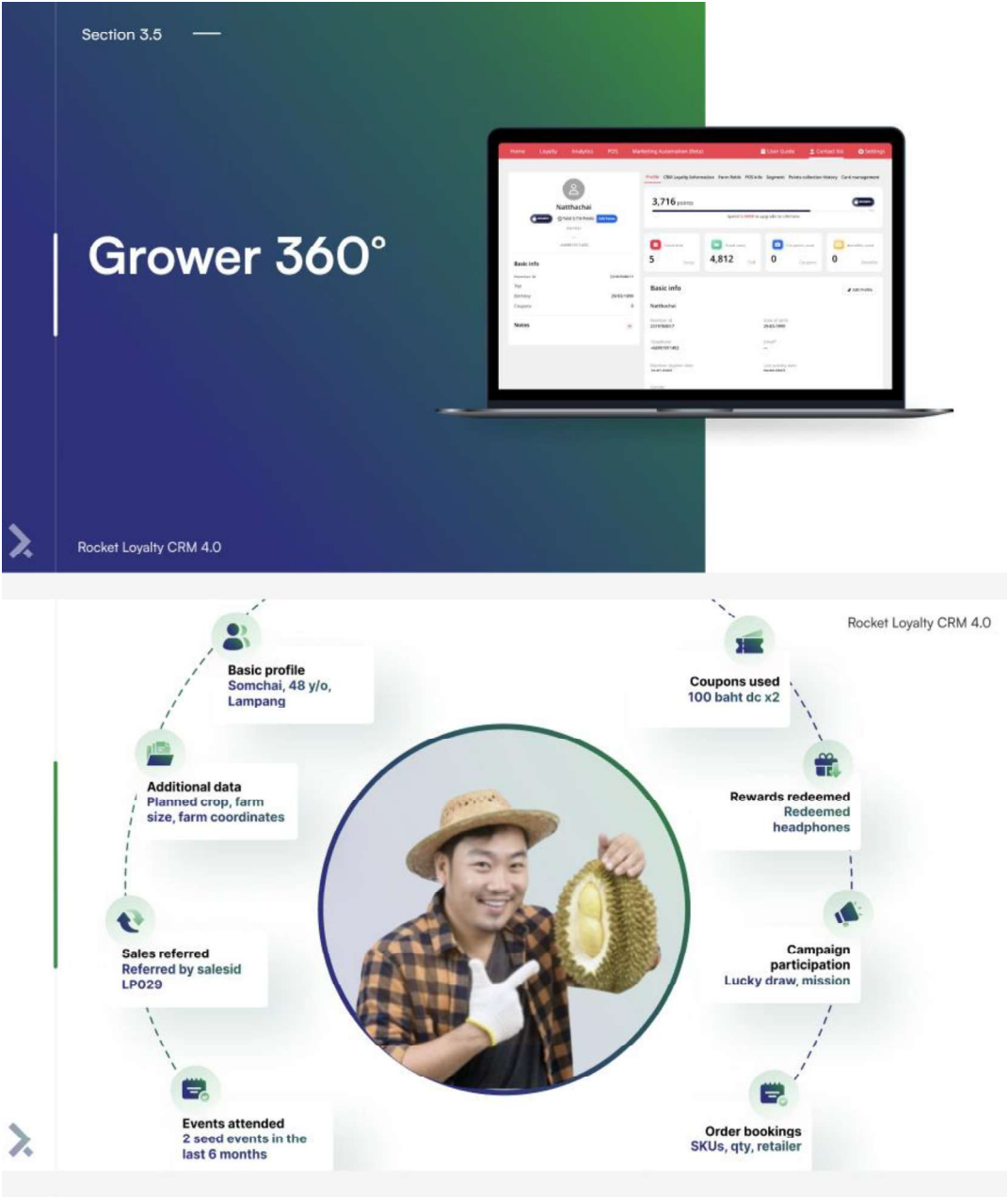
Order details

Apply for order booking

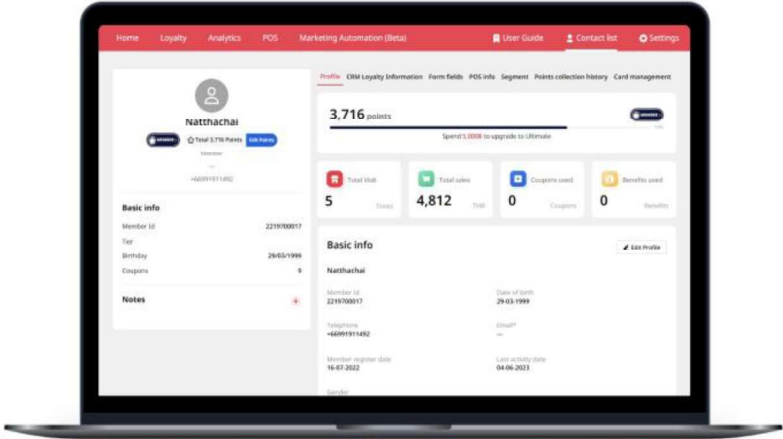
Rocket Loyalty CRM 4.0

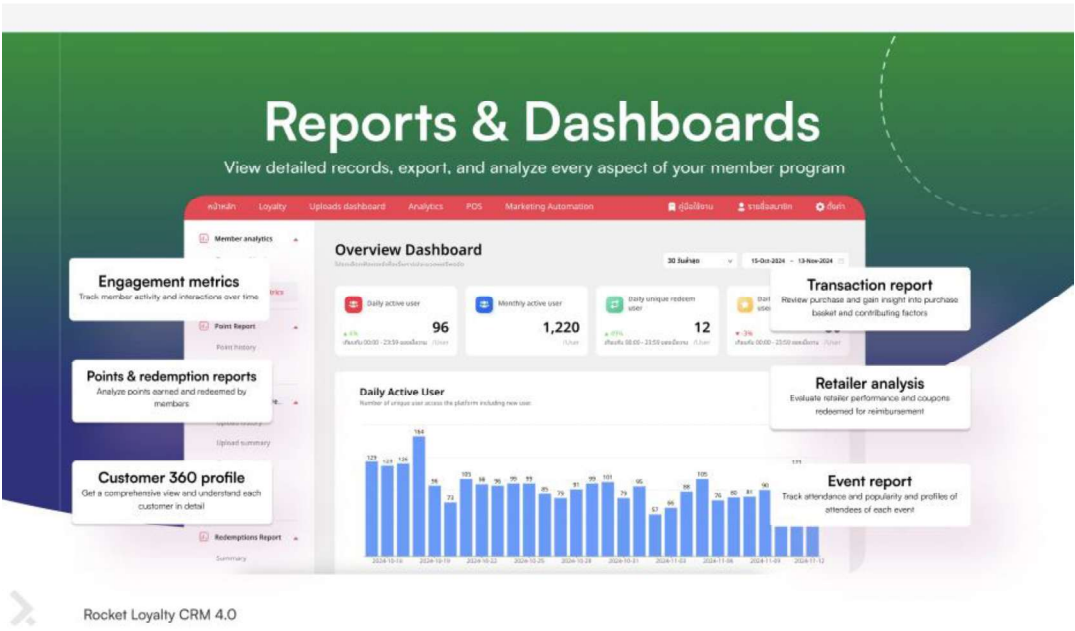
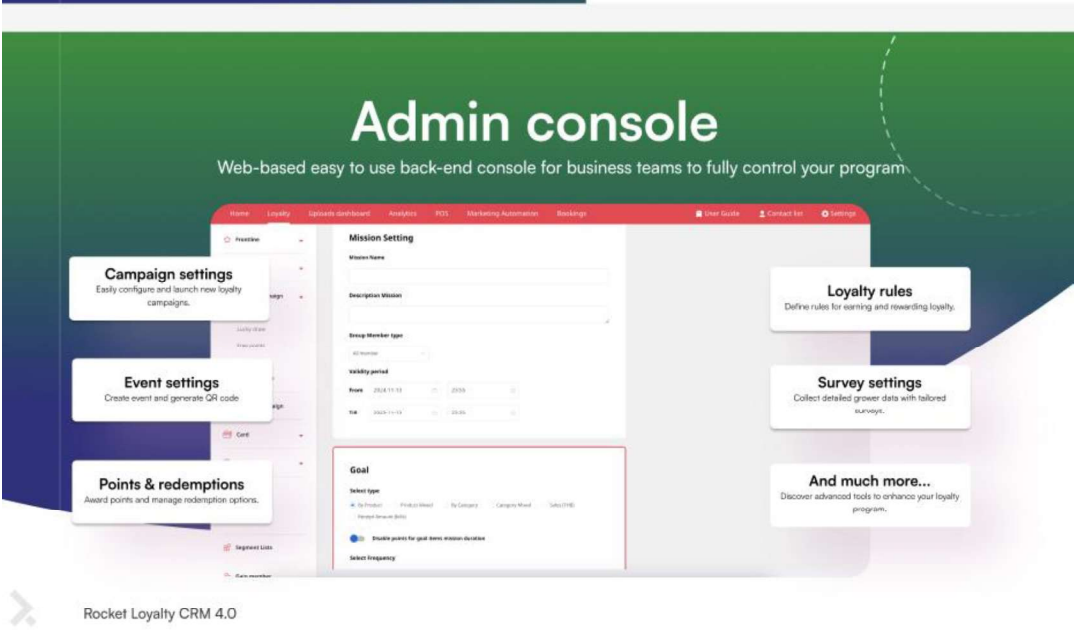
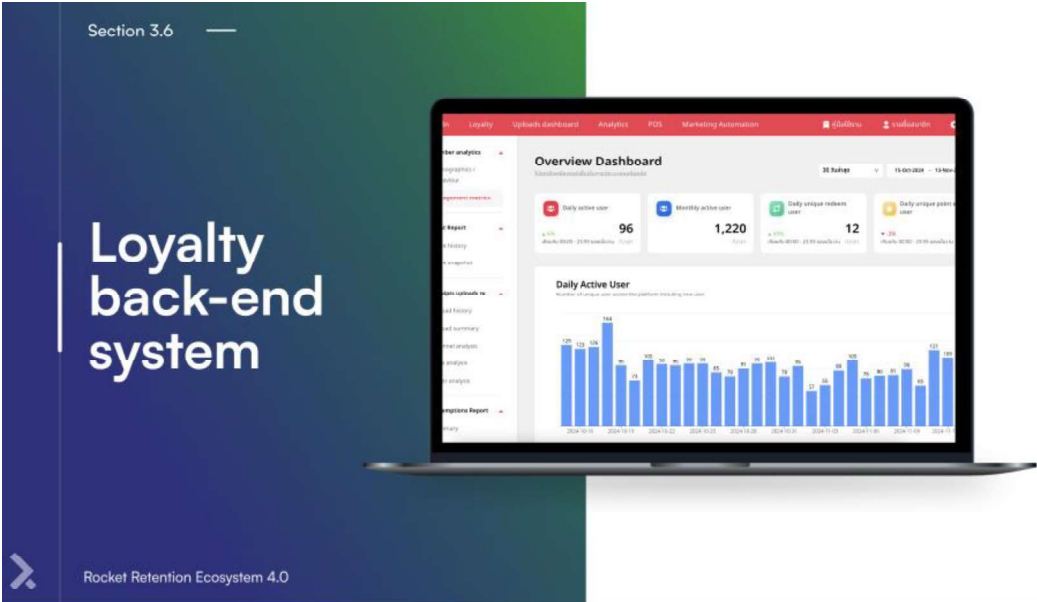
Grower-Retailer ecosystem flow
- member types





Customer profile





Create segment

Home

Loyalty

Uploads dashboard

Analytics

POS

Marketing Automation

Bookings

Frontline

Privileges

Default campaign

Flexible campaign

Card

Alerts

Survey

News

Segment Lists

Gain member

Segments settings

Name

VIP grower

A. Add condition

Cancel

Save

Create segment

Condition Name

VIP grower

Include

Membership Tier is Gold

Sales amount greater than 50000

On

Cancel

Save

Create segment

People enrolled when

Website

Date of Birth

Email

Contact add date

Member registration Date

Traffic source

Last activity date

Membership

Membership Tier

Points to next tier

LINE Properties

Line User ID

Back

Cancel

Next

Rocket Loyalty CRM 4.0

Segment summary & list

Home

Loyalty

Uploads dashboard

Analytics

POS

Marketing Automation

Bookings

User Guide

Frontline

Privileges

Default campaign

Flexible campaign

Card

Alerts

Survey

News

Segment Lists

Gain member

Detail VIP Grower

Total members

116

Members

Total Orders

134

Rewards

Total Spend

72,741

Baht

Average Spend Per Order

543

Baht

Lists Segment

Boardcast message

Segments settings

Lists name of segment

No.	Name	DETAILS
1	Inch	Details
2	Ud	Details
3	urgrgrgr	Details
4	asdasd	Details
5	urururur urgrgrgrgrgrgr	Details

Rocket Loyalty CRM 4.0

Broadcast to segment

Home

Loyalty

Uploads dashboard

Analytics

POS

Marketing Automation

Bookings

User Guide

Frontline

Privileges

Default campaign

Flexible campaign

Card

Alerts

Survey

News

Segment Lists

Gain member

Detail VIP Grower

Total members

116

Members

Total Orders

134

Rewards

Total Spend

72,741

Baht

Average Spend Per Order

543

Baht

Lists Segment

Boardcast message

Segments settings

Select channel for Boardcast message

Boardcast message with Line

Boardcast message with Viber

LINE Boardcast Message

Audience Definition

Selected audience size: 1160 members

Title Boardcast message

Please select title boardcast message

Text message

Image with text

Attach Reward Details or Coupon

Preview Boardcast

Rocket Loyalty CRM 4.0



Attribution reports

Home

Loyalty

Uploads dashboard

Analytics

POS

Marketing Automation

Bookings

User Guide

Contact list

Member analytics

Demographics / behaviour

Engagement metrics

Point Report

Point history

Point snapshot

Receipts uploads re...

Upload history

Upload summary

Channel analysis

Area analysis

Seller analysis

Add filter

Last 12 months

Export

Campaign name	Campaign type	View (qty)	View (value)	Participated (qty)	Participated (value)	Completed (qty)	Completed (value)	Cost	Attribute (new mer
aug_treasure_hunt	events_activities	137	1,654.2318	137	5,801.7510	137	6,997.3815	£ 2645	458.754
bag_aug	reward	280	9,283.6633	0	0.0000	272	21,178.3627	£ 20597	1,043.7
by_tier	mka	109	2,161.3767	103	4,214.9884	115	13,734.2895	£ 3778	597.556
cross_purchase	mission	218	2,690.9248	234	11,095.6958	234	30,151.1362	£ 25626	2,125.9
cross_purchase	mka	3	20.1450	3	70.5075	3	545.0356	£ 25626	0.0000
cs_survey_permanent	survey	247	2,983.4039	3	30.0220	244	16,361.5439	£ 3778	1,086.2
food_aug	mission	348	6,615.2627	340	12,862.6623	344	36,289.8362	£ 8535	1,538.3
food_survey_aug	survey	163	4,646.0454	0	0.0000	163	13,959.6387	£ 4253	482.49
food_x2_aug	points_promo	5	33.7734	0	0.0000	277	26,905.6331	£ 8535	1,158.0

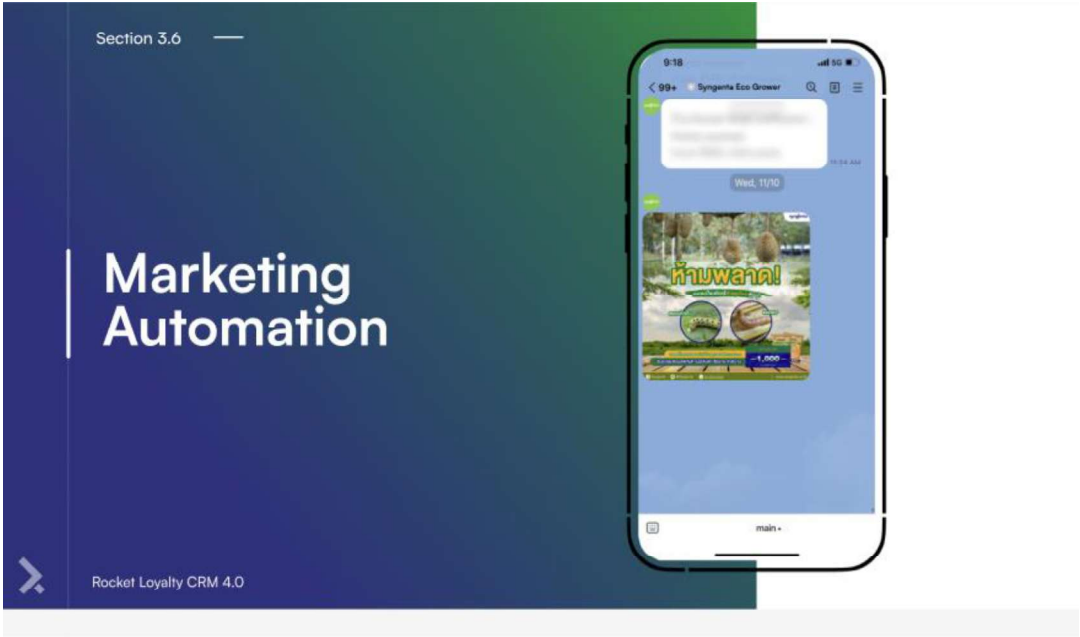
<

>

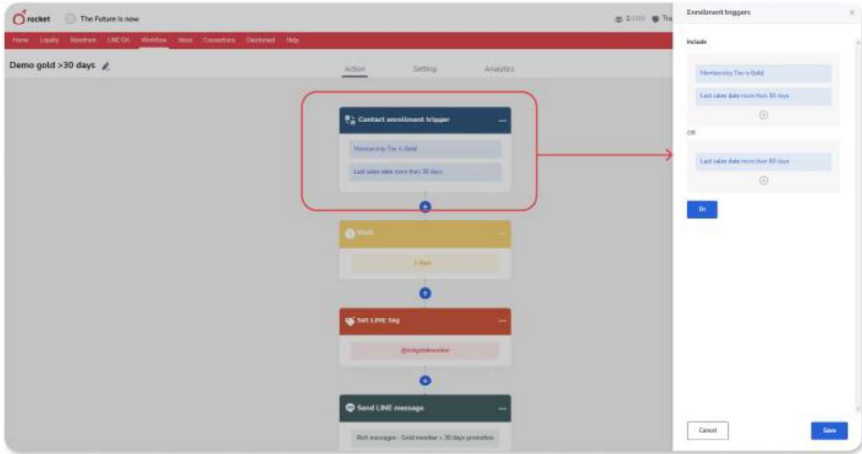
10 / page

Rocket Loyalty CRM 4.0



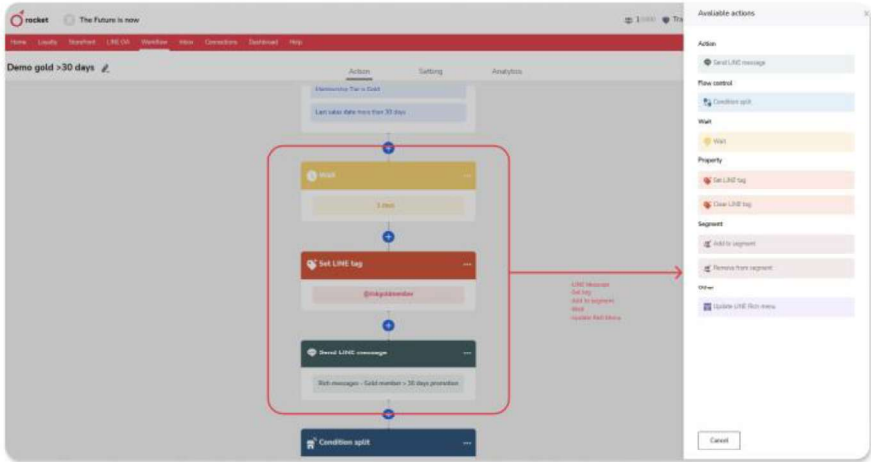


Conditions

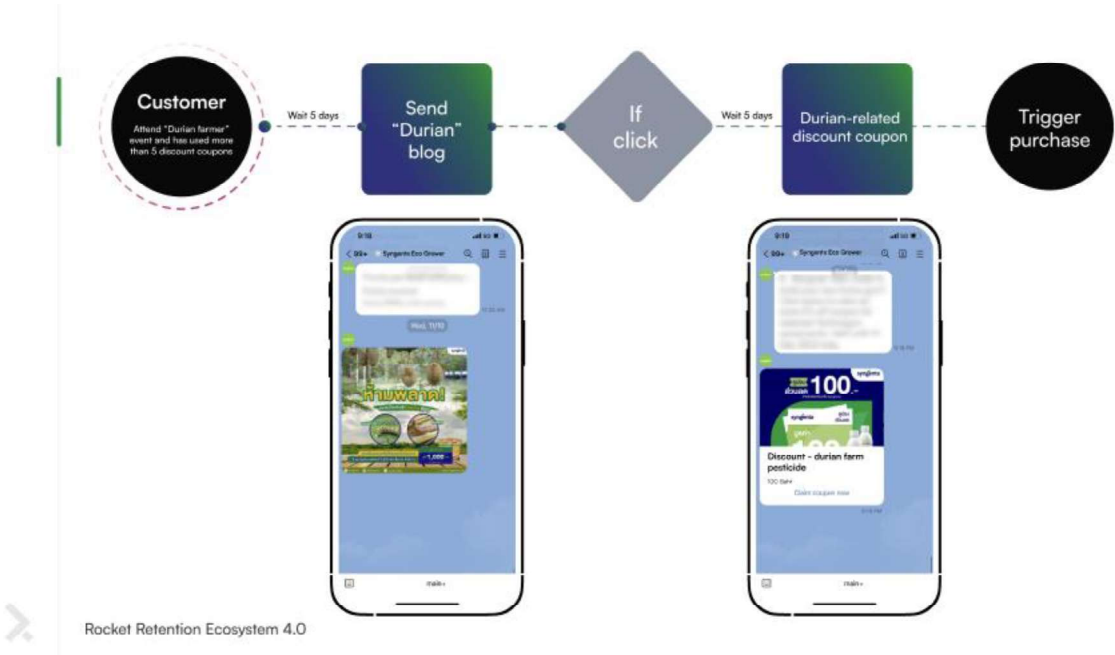


Rocket Loyalty CRM 4.0

Actions



Rocket Loyalty CRM 4.0

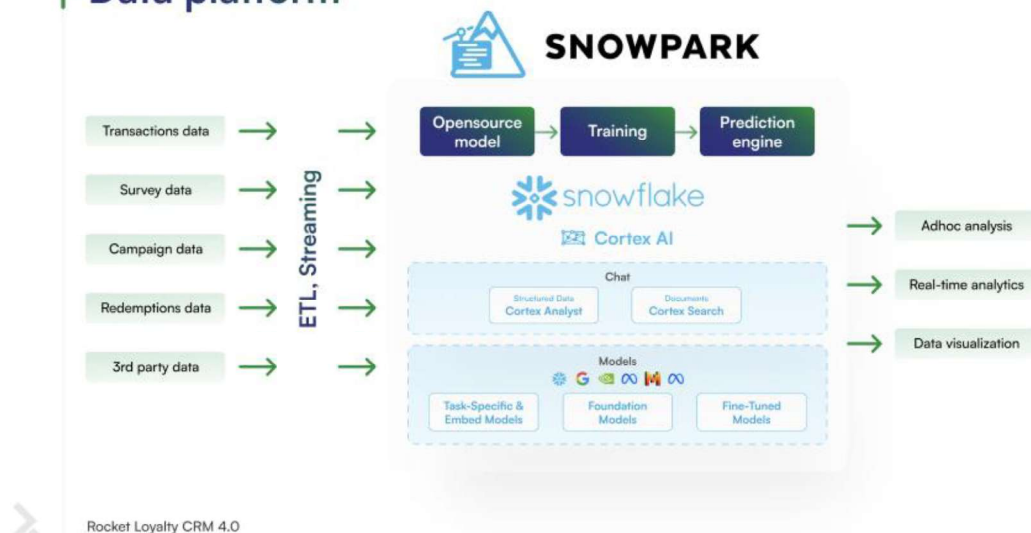


Section 4

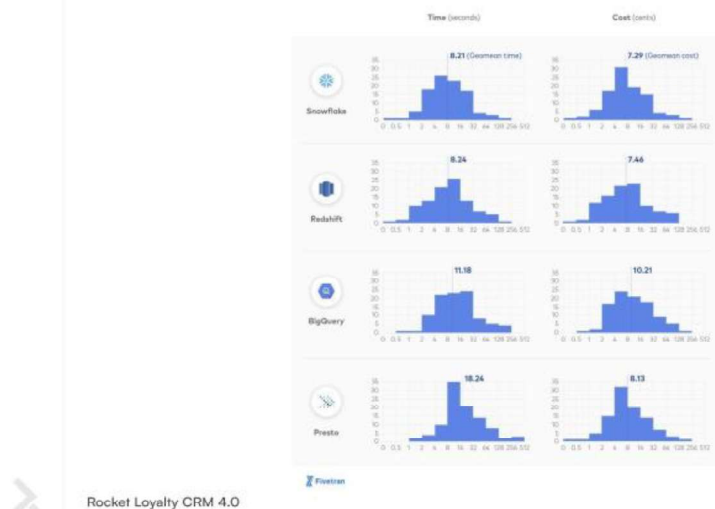
Data platform & services

Rocket Retention Ecosystem 4.0

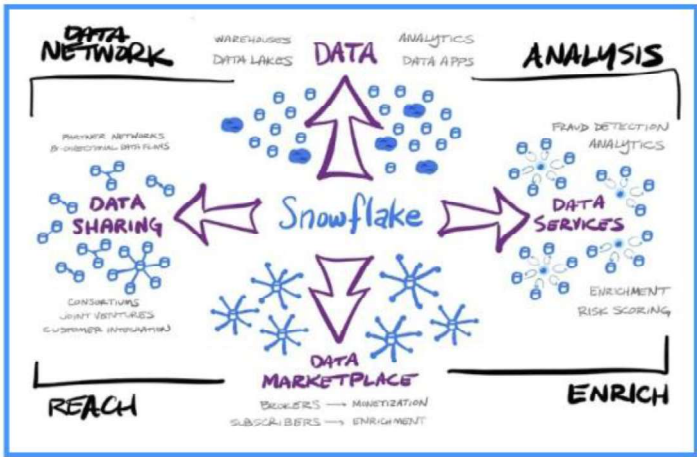
Data platform



Why Snowflake? - Performance



Why Snowflake? - End-to-End Platform



Rocket Loyalty CRM 4.0

Why Snowflake? - End-to-end Platform



One Platform,
One Copy of Data,
Many Workloads

Secure & Governed
Access to All
Data

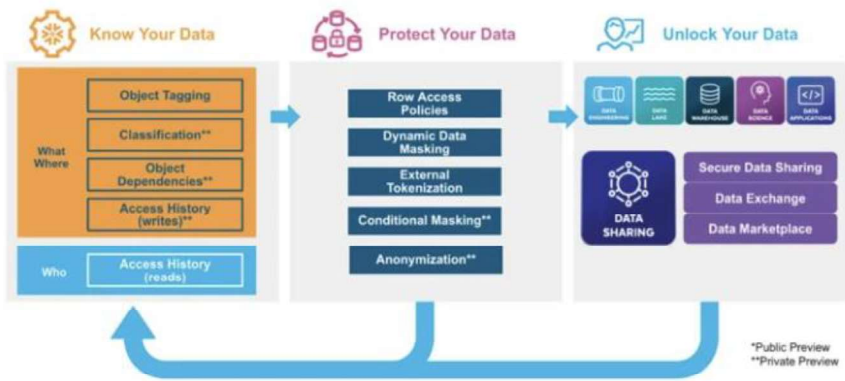
Virtually Unlimited
Performance
and Scale

Near-Zero
Maintenance,
as a Service

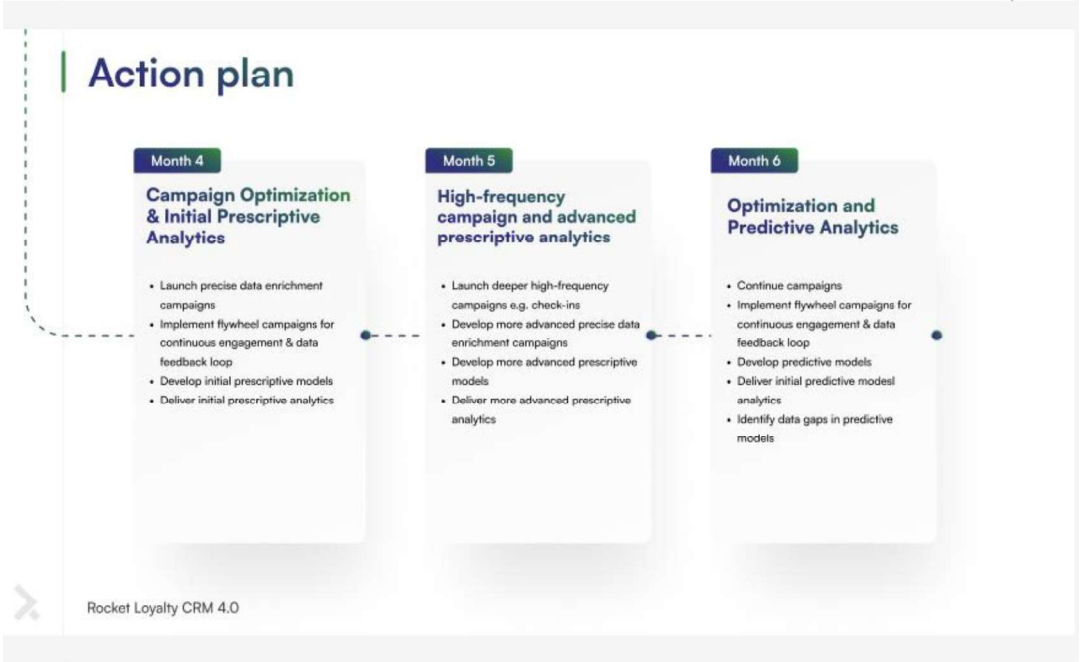
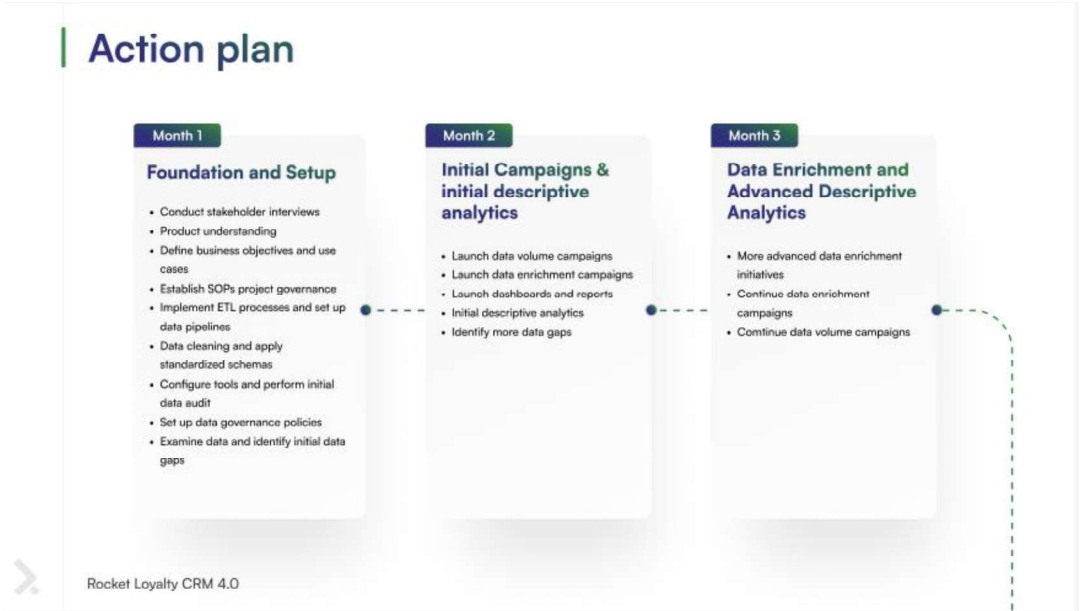


Rocket Loyalty CRM 4.0

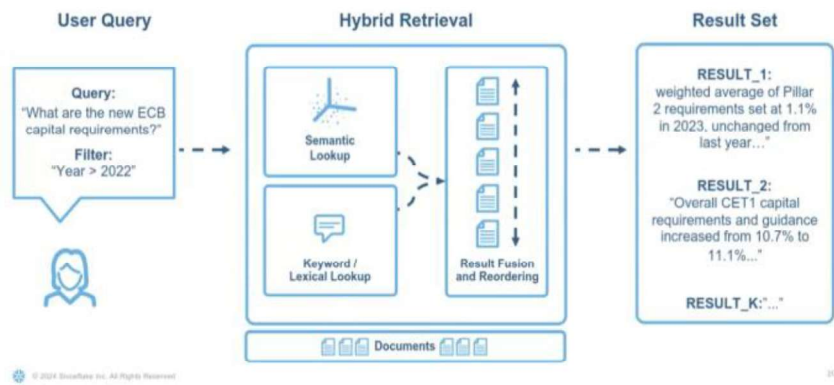
Why Snowflake? - Data Governance Capabilities



Rocket Loyalty CRM 4.0



Cortex Search - fully managed Indexing and Retrieval



Rocket Loyalty CRM 4.0

Cortex - easy to process data at scale with LLMs

The screenshot shows the Cortex LLM Functions Demo interface. It features a code editor with a SQL query:

```
SELECT SUMMARIZE_TEXT(customer_feedback) AS summary, product_name, defect, and summary in JSON format: {"feedback": <feedback>} FROM feedback LIMIT 10;
```

 The interface includes buttons for **Python**, **SQL**, and **Markdown**. To the right of the code editor are three buttons: **Choose Foundation Model**, **Add Prompt**, and **Point to Table**. Below the code editor, there are three sections: **Text processing use cases:** (Custom summaries, sentiment analysis, etc.), **Available interfaces:** (SQL, Python, REST API), and **Serverless fine-tuning:** (Mistral, Meta, etc.).

Rocket Loyalty CRM 4.0

Cortex - business language to complex queries

The screenshot shows the Cortex Copilot interface. It features a **My Worksheet** section with a natural language query: "Show me the names of the top 5 contributors with the most patents". Below this, there is a table with the results:

CONTRIBUTOR_NAME	PATENT_COUNT
INTERNATIONAL BUSINESS MACHINES CORPORATION	218932
SAMSUNG ELECTRONICS CO., LTD.	119962
CANON KABUSHIKI KAISHA	112870
SONY CORPORATION	73897
INTEL CORPORATION	69264

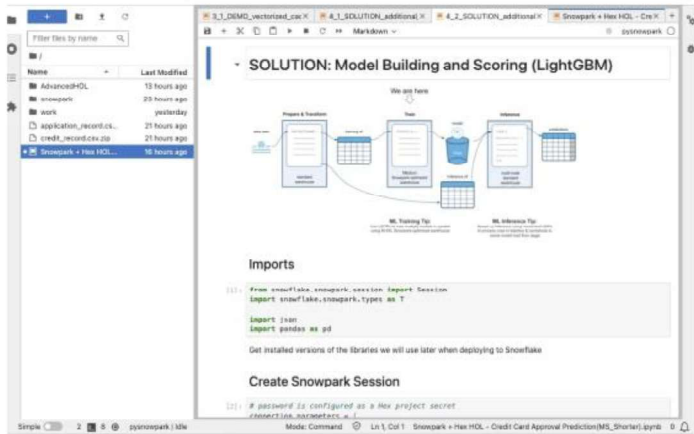
. To the right, the **Copilot** section shows the SQL query generated by the system:

```
SELECT c.contributor_name, COUNT(p.patent_id) AS patent_count FROM wpts_patent_contributor_relationships AS r JOIN wpts_contributor_index AS c ON r.contributor_id = c.contributor_id JOIN wpts_patent_index AS p ON r.patent_id = p.patent_id GROUP BY c.contributor_name ORDER BY patent_count DESC LIMIT 5;
```

Rocket Loyalty CRM 4.0

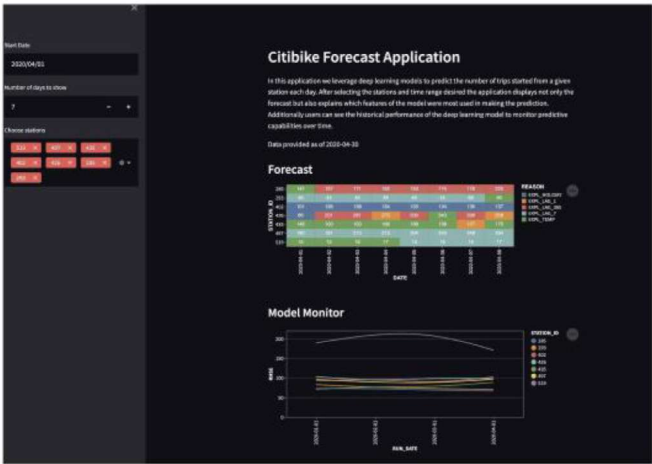


Model Building with Snowpark



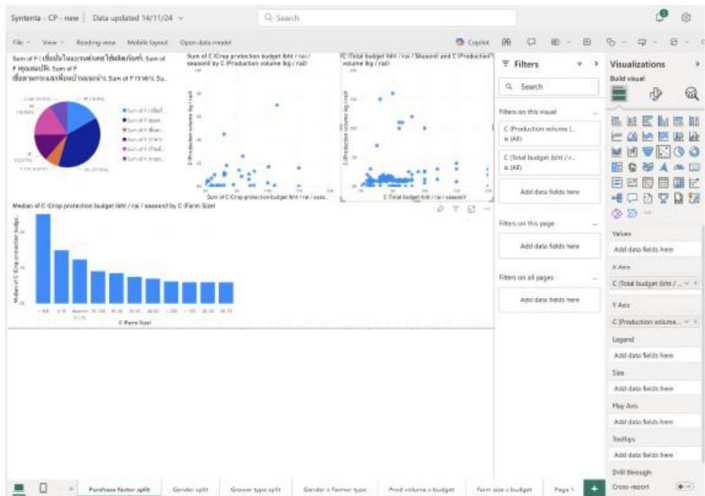
Rocket Loyalty CRM 4.0

Sample use case



Rocket Loyalty CRM 4.0

Real-time dashboard



Rocket Loyalty CRM 4.0



Rewards as a Service

Sample catalogue

Dining

Retail

top-up

lifestyle

health & wellness

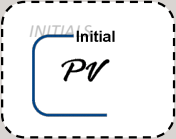
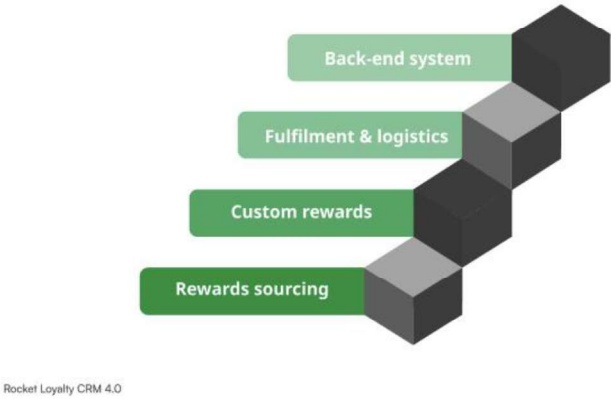
online

travel

360° Customer-Centric Rewards Experience

- Wake up and get a regular latte from Starbucks
- Take Grab to work while listening Spotify
- Time for a quick snack from 7-Eleven
- Get my favourite lunch with Deliveroo
- Afternoon ice-cream with Baskin-Robbins
- Time for grocery in CS Fresh
- Meeting my bestie for a dinner in Restaurant
- I really want that cool bag from ZALORA
- Time for my favourite series on CATCHPLAY
- And just before bed, a quick amazon

One-stop shop for rewards sourcing and management



SLA (Technical)

System availability (uptime)

The service provider guarantees a minimum uptime of 99.99%.

Credits will be issued as follows:

- Uptime below 99.99% but above 99%: 5% monthly credit refund for Rocket Loyalty CRM Corporate License.
- Uptime below 99% but above 95%: 30% monthly credit refund for Rocket Loyalty CRM Corporate License.
- Uptime below 95%: 100% monthly credit refund for Rocket Loyalty CRM Corporate License.

Software bugs

The service provider will address issues based on severity level and resolution time, starting from the time users report the issue until resolution after the service provider's comprehensive investigation.

Business Impact	Response Time	Resolution Time
Critical	15 minutes	2 hours
High	30 minutes	4 hours
Normal	30 minutes	6 hours
Minor	30 minutes	1 hour

Exhibit B: The Charge and Payment

		QTY	One Time Set Up Cost	QTY	Unit	Recurring Cost	Total Recurring Cost	Total Cost per Year
LINE-based grower loyalty platform - software								
	Core loyalty program -Registration & membership -Points engine -Tier engine -Rewards / coupon engine -Survey / questionnaire -Customer and sales 360 profile -Redefine grower register -Grower acquisition plan -Data collection & consolidation -Data Accessibility -Data governance policies and process -Reporting and analytics dashboard Software license rental & Maintenance fee Data Processing			12	Months	63,000	756,000	756,000
	Event Registration & Attendee			12	Months	38,000	456,000	456,000
	Referral Friends			12	Months	15,000	180,000	180,000
	Marketing Automation -Segmentation -Message push (LINE, SMS) to segment			12	Months	30,000	360,000	360,000
LINE-based grower loyalty platform - services								
	Rich Menu	1	15,000				-	15,000
	Set up Loyalty Platform	1	300,000				-	300,000
	Campaign management			24	Campaign	15,000	360,000	360,000
	% Service fee on reward (if different % please specify)			TBC	%	9-11%	per actual	
	Delivery Fee			TBC	Delivery	According to real co	per actual	
	OTP			TBC	Message	0.20	per actual	
	New Campaign Artwork Design			24	Campaign	10,000	240,000	240,000
	Campaign Artwork for Line Board case			10	Campaign	-	-	0
Other softwares								
	Unified social media management software			12	Months	11,000	132,000	132,000
	Omnichannel chat software (assume 10 agents)			12	Months	22,000	264,000	264,000
Data Analysis								
	Data platform - Snowflake platform (datawarehouse, snowpark, Cortex AI) - data storage, compute for data loading, compute for data analysis and recommendation engine training	1	150,000	12	Months	120,000	1,440,000	1,590,000
	Data services - Data Collection, Ingestion, and Preparation, Data Analytics & Predictive Modeling, Data presentation, Feedback & Iteration, Business Understanding	1	0	12	Months	171,000	2,052,000	2,052,000
	Total Cost (THB)		465,000			495,000	6,240,000	6,705,000

Payment Terms:

- Credit term 45 days or next period of client.
- One-time cost - 45% upfront, 45% after UAT, 10% 2 months after go-live
- Rocket and 3rd party software subscription - 6 months billing
- Rocket services recurring - monthly billing
- Rewards sourcing, fulfilment and logistics - monthly billing
- Price in above table is excluded vat 7%

Exhibit C: KPI

1. KPI Summary

	KPI	Description	Forecast KPI (quarterly)	Notes
1	Digital engagement in data enrichment	No of active user that respond to campaign	18,972	Assume 35% on 60k active users in 1Q. Add 5% in 2Q and 3Q
2	ROI on campaign on data enrichment	Supplier to provide campaign detail, investment, ROI	1.5m THB value in 1Q. c.129% ROI	Assume above campaign engagement rate, 3 datapoints (quality) per engagement, 100 baht value per datapoint. Assume value per datapoint remains constant (will likely increase)
3	% Improvement in conversion in on-ground activities / farmer meeting	3.1 % increase in sales from on-ground activities (baseline 1,223 mn THB)	13/22/24mn incremental sales 129%/145%/143% ROI	See calculations
		3.2 suggest % increase of avg grower purchase (baseline 4,266 THB AOV)	1%/1.5%/1.5% AOV uplift	Based on conservative overlay on KPi of similar past projects
		3.3 Start tracking conversion rate and suggest improvmenet qoq	See qoq progression above	

Remark

- Above KPI for Syngenta Crop Protection Limited. KPI for Syngenta Seeds (Thailand) Limited will be define with the same logic apply.

2. KPI Calculation

	Current (assumed)	Uplift	Target	
Assumptions				
Starting AOV (THB) - blended	4276	2%	4340.14	
Starting frequency (per annum) - blended	4.8	2%	4.862254443	
Retention rate (%)	70%	3%	73%	
Referral rate (%)	0%	3%	3%	
CLV (THB)	67,944		80,504	
CLV increase (%)			18%	
	Current	Q1	Q2	Q3
Sales order uplift				
Member base assumptions				
Total members	200,000	204,000	210,120	216,424
Total member growth (%)		2%	3%	3%
Total member growth - absolute		4,000	6,120	6,304
Active rate (%)	30%	31%	33%	35%
Active members	60000	63240	69339.6	75748.26
Uplift (from Rocket tools) assumptions				
AOV uplift (%)		1.0%	1.5%	1.5%
Frequency uplift (%)		1.0%	2.0%	2.0%
Incremental revenue (per year) - THB				
		13,019,324	21,624,594	23,623,231
Total (3 quarters) - THB				58,267,150
Data enrichment				
Data points collected		55458	69604.29	76171.1265
Data points value		5,545,800.0	6,960,429.0	7,617,112.7
Value / data	100			
Campaign engagement rate		30%	35%	35%
Datapoints / campaign		3	3	3
Cost				
Rewards cost		2,000,000	2,500,000	3,000,000
Quarterly allocation		20.00%	25.00%	30.00%
Rewards annual budget		10,000,000		
Total cost (software)		1,500,000	1,500,000	1,500,000
Services cost		810,000	810,000	810,000
Additional cost (per quarter)				
		4,310,000	4,810,000	5,310,000
Total (3 years) - THB				14,430,000
Return on investment (ROI) - incremental rev		202%	350%	345%
Return on investment (ROI) - data enrichment		128.67%	144.71%	143.45%
		202%/350%/345% ROI		
		129%/145%/143% ROI		

Exhibit D : Project Timeline

		Dec 2024				Jan 2025					Feb 2025				Mar 2025			
	Type	1	2	3	4	1	2	3	4	5	1	2	3	4	1	2	3	4
Syngenta Eco Grower																		
Phase 2																		
Kickoff	Meeting																	
Detailed requirement discovery	Meeting																	
Develop event bookings back-end	Development																	
Develop event bookings front-end	Development																	
Implement data pipelines	Development																	
Implement and setup Snowflake platform	Development																	
Set up social media management and chat software	Setup																	
Setup PowerBI	Setup																	
Setup phase 1 features	Setup																	
System integration test	Meeting																	
Demo 1	Meeting																	
Adjust Demo 1	Development																	
Demo final	Meeting																	
Golive phase 1																		
Phase 2 TBC)																		
Develop booking order feature back-end	Development																	
Develop booking order feature front-end	Development																	
UAT	Meeting																	
Fix from UAT	Development																	
UAT 2	Meeting																	
Golive phase 2																		



Exhibit E: Syngenta Policy: Compliance – A guide for third parties

Doing the right thing - together

Living up to our ethical standards is not only the right thing to do but it is also critical to the efficiency and reliability of our operations.

Syngenta is committed to doing business with the highest possible standards of ethics and integrity. By upholding high standards, we can ensure we maintain our good reputation, meet legal and regulatory requirements worldwide and build a firm foundation for future growth. When our work involves the use of third parties, we want the same standards to apply.

We've produced this guide to give you an overview of the minimum standards to adhere to when we conduct our business together. When we work together, we would like you to follow these principles so that legally, ethically and morally, we're living up to the same standards.

Many of you may already have your own ethical policies and procedures in place. We're not asking to supersede or replace any of your existing policies or contractual obligations. The aim of this guide is to share our standards and principles with you and ask you to act in accordance with them and live up to them when you're working with us.

If you have any questions, please get in touch with your Syngenta contact.

Together we can ensure that we do business in the right way.

- I. By 'third parties', we mean people or companies who supply products or services either to Syngenta or on our behalf.
- II. A 'public official' may include, but is not limited to:
 - Any person holding an office or working for or on behalf of a government entity at any level (e.g. a regulatory official or government inspector)
 - Any person working for a government-owned or controlled enterprise, or a public national or international organization (e.g. a government-owned school or university)
 - Any person performing a public function or providing a public service, even if that person works for a non-governmental institution
 - Any person who is considered a public official under local law.

1. We don't allow bribery, kickbacks or other unofficial payments

We are committed to conducting business properly with full transparency and without engaging in any form of bribery or other corrupt behavior. You must not offer or accept bribes to obtain an undue or improper advantage for Syngenta.

We expect you to understand and apply the following principles:

A: We don't pay bribes

Bribery goes against our values. We don't pay, offer to pay or receive bribes in any form, including kickbacks and other unofficial or improper payments.

B: We prohibit all types of bribes

A bribe is a bribe, regardless of whether it takes the form of cash, an excessive or lavish gift, an employment offer or a charitable contribution. Anything which is offered or received with the intention of improperly influencing a business decision for or on behalf of Syngenta is considered a bribe.

C: We don't allow facilitation payments

You must not offer or make any 'facilitation payments' to public officials when acting on behalf of Syngenta. These unofficial, nominal fees are designed to secure or speed up a routine action that the official is obliged to perform, such as issuing a license or allowing goods through customs.

D: We make no distinction between public and private bribery

We don't support bribery, whether it's to public officials, private business partners or members of their family.

E: We keep records of business dealings

When you supply products or services to Syngenta, we ask you to keep proper written records of this work. On occasion, Syngenta – or parties appointed by us – may ask to see these records in order to check them.

2. Gifts and entertainment must not influence business decisions

While we recognize that gifts and entertainment are often seen as an established part of business, it is vital that they must never improperly influence, or seem to improperly influence, a business decision.

Gifts and entertainment which are provided in the absence of any clear business justification or legitimate purpose, and are intended to improperly influence or obtain a business decision, are considered a bribe. All forms of bribes are prohibited by Syngenta.

When doing business with or on behalf of Syngenta, you must not offer to a Syngenta employee, a government or public official or to any other party on our behalf any gift or entertainment which is inappropriate, excessive or could be seen as attempting to improperly influence a business decision

3. We will not tolerate fraud

The deliberate misuse of company resources for personal enrichment by Syngenta employees or third parties is fraud.

Syngenta has zero tolerance for the act or concealment of fraud.

When you're doing business with Syngenta, we require that you support our anti-fraud stance and help us in any investigation of suspected fraud that involves or impacts our business

4. We do not condone, facilitate or support money laundering

We only conduct business with reputable third parties who are involved in legitimate business dealings, using funds derived from legitimate sources.

You must comply with all applicable laws and regulations that prohibit money laundering. Syngenta business shall not be misused for money laundering purposes.

5. We avoid conflicts of interest

All business transactions must be conducted with the best interests of Syngenta in mind.

You must not benefit improperly through your relationships with Syngenta employees.

Equally, no Syngenta employee may personally benefit in an improper way from a relationship with another individual or organization.

6. We prohibit anti-competitive behavior

Competition laws apply to all business arrangements, whether they are in written, oral or any other form. Price fixing, bid rigging and other anti-competitive behaviors are prohibited.

You must ensure that your business on behalf of Syngenta is conducted in an open and competitive manner, and that all business practices fully comply with applicable competition laws wherever they are conducted.

7. We are committed to safe working conditions

We are committed to ensuring the safety of our employees and complying with all applicable health and safety laws and regulations.

When you work with us, we ask you to comply with all applicable health and safety laws and regulations, and to create safe working conditions and a healthy work environment for workers at all premises under your control.

8. We comply with environmental standards

We aim to minimize the environmental impact of our operations by complying with all applicable laws, international guidelines and industry standards.

You must comply with all applicable environmental laws, guidelines and standards relevant to operations, whether at your own premises or those of Syngenta

9. We respect trade controls and economic sanctions

We follow applicable international trade control laws and regulations, including those relating to economic sanctions, customs requirements and export controls. Such requirements also include not participating in boycotts or other restrictive trade practices.

Likewise, we require you to respect all relevant trade controls and economic sanctions.

10. We source materials responsibly

We are committed to sourcing all materials used in our business responsibly.

We ask you to take a similarly responsible approach. This includes implementing supply chain due diligence policies and making sure that the money you pay to others for materials does not go to groups or people who violate employment laws, engage in violence or are involved in the abuse of human rights.

11. We respect intellectual property and confidential information

We retain the ownership of all intellectual property that we create. You must respect intellectual property rights and safeguard Syngenta confidential information, customer and employee information.

You should only use Syngenta information and property (including equipment, drawings and specifications) for the purpose for which they were originally provided.

You should take appropriate steps to safeguard and maintain the confidentiality of Syngenta's proprietary information, including maintaining it in confidence and in secure work areas and not disclosing it to third parties (including other customers, subcontractors, etc.) without the express prior written permission of Syngenta.

12. We respect data privacy

We take strict measures to protect the data in our care.

You should keep all personal and sensitive information relating to Syngenta employees and business partners confidential and in accordance with applicable data privacy standards and contractual requirements.

You should not transfer, sell or trade personal information with other third parties

13. Subcontractors must uphold the same standards

We require subcontractors working on our behalf to ensure that they comply with our standards.

We ask you to make sure that any subcontractors you employ to carry out business for Syngenta also comply with our standards. In addition, you must notify Syngenta in writing prior to using subcontractors, and the use of contractors must be expressly permitted by the relevant contractual agreements between us

How to report/raise concerns

Syngenta takes compliance with this guide seriously. If you suspect that somebody is not complying with the principles of this guide then please let us know immediately so that we can look into the matter.

You can do this by sending an email to ABCDD.Compliance@syngenta.com

Any questions?

We hope this guide gives you a clear idea of how we would like you to do business when you work with Syngenta. If you have any questions please get in touch with your usual contact at Syngenta or email ABCDD.Compliance@syngenta.com and we'll do our best to help.

Exhibit C – Non-Disclosure Agreement

1. Syngenta and its Affiliates have and/or will disclose to Supplier certain information that is either identified as confidential at the time of disclosure or should be understood by a reasonable person to be confidential in nature ("Confidential Information").
2. Excepted from the above obligations shall be Confidential Information that Supplier can prove:
 - a) was in the public domain at the time of disclosure by or on behalf of Syngenta or after disclosure became part of the public domain, other than by breach of this Agreement by Supplier, its employees, officers, directors, agents or subcontractors;
 - b) was acquired without any confidentiality obligation from a third party who had no respective confidentiality obligations towards Syngenta or any of its Affiliates
 - c) was at Supplier's possession without any confidentiality obligations;
 - d) was developed independently by the Supplier with no reliance at all on any Confidential Information; or
 - e) Supplier might be under a legal obligation to disclose to a government or other public authority, provided that Supplier immediately upon learning of such obligation, and prior to disclosure, if lawfully possible, notifies Syngenta of such disclosure obligation and reasonably cooperates with Syngenta in limiting the scope of disclosure, if lawfully possible.
 - f) Confidential Information shall not be deemed to be within the foregoing exceptions merely because it is (i) specific and merely embraced by more general information in the public domain or Supplier's possession or (ii) a combination which can be pieced together to re-construct the Confidential Information from multiple sources, none of which shows the whole combination, its principle of operation and method of use.
3. Supplier undertakes to maintain strictly confidential at all times any and all Confidential Information that it either receives or has received from or on behalf of Syngenta and not to use any Confidential Information for any purpose whatsoever other than the provision of the Products and/or Services in line with this Agreement. Supplier shall only disclose Confidential Information to those employees, officers, authorised agents and subcontractors who have a need to know in order to properly provide the Products and/or Services. Supplier will request its authorised agents and subcontractors to sign a secrecy undertaking substantially similar to this Exhibit C and provide this to Syngenta promptly upon Syngenta's request.
4. The Supplier shall ensure that there are implemented at all times appropriate technical and organisational security measures in accordance with Best Industry Practice ("Security Measures") to protect the security of all stored or processed Confidential Information. The Security Measures shall include (without limitation) the technical and organizational measures as agreed in a SOW; provided always that the measures implemented by the Supplier shall provide at least the same level of protection for the Confidential Information as is provided for by Syngenta's internal corporate security and information security policies, codes of practice and procedures in force (and as updated) from time to time.

5. If Supplier becomes aware of any unauthorised use, disclosure, access, possession or knowledge of all or any of the Confidential Information, Supplier shall immediately notify Syngenta and take all reasonable steps requested by Syngenta to protect the confidentiality of such Confidential Information.
6. Unless otherwise agreed, the above confidentiality obligations remain valid for a period of 5 (five) years from the date of termination of the SOW.
7. Supplier acknowledges that in the event of a breach of the confidentiality provisions of this Agreement Syngenta may suffer irreparable harm and money damages may not be a sufficient remedy for any breach of this Agreement by Supplier, in addition to all other remedies, Syngenta shall be entitled to the remedy of an injunction for the breach or threatened breach of the terms of this Agreement.
8. Upon termination of this Agreement or a SOW, Supplier shall destroy or – if Syngenta requests in writing - return to Syngenta within thirty (30) days any Confidential Information. However Supplier may keep an archival set of its working papers together with such copies of Syngenta's Confidential Information necessary to comply with applicable laws, regulations and professional standards.

Notwithstanding anything to the contrary in this Agreement, Supplier may disclose Confidential Information as may be required by law, including any subpoena or other similar form of process. Supplier will provide Syngenta with prompt notice of any such request (to the extent as such notice is not prohibited by law), so that Syngenta may object to the request and/or seek an appropriate protective order.

Exhibit F – Non-Disclosure Agreement



Rocket_NDA_-_Grower
Data_and_Engagement



Exhibit G – Data Protection

1.1 In this Exhibit the following definitions apply unless the context otherwise requires:

“Data Protection Legislation” shall mean laws, enactments, regulations, orders, standards and other similar instruments applicable in the country from which data originates or, if there are no such defining laws or regulations in the respective country, as set forth in the EU Directive on Data Protection (95/46/EC);

“Data Subject” shall mean an identifiable or identified person who is the subject of Personal Data (including, where local laws and regulations treat data relating to legal entities as personal data, legal persons);

“Personal Data” shall mean any personal data (as such expression (or equivalent expression) is defined in the by the Data Protection Legislation);

“Process”, **“processing”** and cognate expressions shall have the meaning assigned to the term “processing of personal data” (and cognate expressions) in the EU Directive on Data Protection (95/46/EC);

1.2 Syngenta and the Supplier acknowledge that for the purposes of the Data Protection Legislation, Syngenta (or one or more of its Affiliates) is the data controller and the Supplier is the data processor of any Personal Data.

1.3 The Supplier warrants that it will process the Personal Data at all times in compliance with all applicable Data Protection Legislation and will not do any act or omit to do any act which would place Syngenta or any of its Affiliates in breach of the Data Protection Legislation.

1.4 The Supplier shall:

1.4.1 process the Personal Data only for to the extent, and in such a manner, as is strictly necessary for the purpose of fulfilling its obligations under this Agreement, only for Syngenta or its Affiliates, and in accordance with Syngenta’s instructions from time to time (including instructions regarding the amendment, transfer, deletion and destruction of Personal Data);

1.4.2 give Syngenta and its Affiliates reasonable assistance as Syngenta and its Affiliate reasonably require in connection with giving notice of the Supplier’s processing activities to Data Subjects and any applicable governmental or regulatory authority and responding to requests relating to the Supplier’s processing activities made by any applicable governmental or regulatory authority and shall abide by the advice of any regulatory authority with regarding to the processing of Personal Data.

1.4.3 not (where the Syngenta Affiliate from which the data originates is based in the European Economic Area or Switzerland) transfer that Personal Data or allow such Personal Data to be processed from, outside the European Economic Area or Switzerland without the prior written consent of Syngenta unless such transfer is to or such processing is from a country which has been formally recognized by the EU as affording the Personal Data an adequate level of protection or is otherwise permitted to be done by the relevant Data Protection Legislation.

- 1.4.4 not (where the Syngenta Affiliate from which the data originates is based in a country other than a member state of the European Economic Area or Switzerland) transfer that Personal Data to any other country or allow the processing of such Personal Data from another country without the prior written consent of Syngenta unless such transfer or processing is permitted in such other country by the relevant Data Protection Legislation.
- 1.4.5 ensure that access to the Personal Data is limited to those employees who are reliable and trustworthy and who need access to the Personal Data to meet the Supplier's obligations under this Agreement and who are informed of the confidential nature of the Personal Data. The Supplier shall ensure that all such employees have undertaken training in the relevant Data Protection Legislation and their duties under this Agreement.
- 1.4.6 notify Syngenta in writing within 48 hours if it receives a request from a Data Subject for access to that person's Personal Data and shall comply with Syngenta's instructions and provide Syngenta with full co-operation and assistance (including providing any relevant documents or files) in relation to any such request.
- 1.4.7 (on receipt of reasonable notice) give Syngenta and its representative or independent auditors (bound by a duty of confidentiality) any regulatory authority access to its records and facilities so as to allow Syngenta or its representatives or independent auditors, or the regulatory authority, to inspect all facilities, equipment, documents and electronic data relating to the processing of Personal Data by the Supplier.
- 1.4.8 ensure that there are implemented at all times appropriate technical and organisational security measures against the unauthorised or unlawful processing of personal data, including (without limitation) against the accidental or unlawful loss or destruction of, alteration of, damage to, unauthorised disclosure of or access to personal data (in particular where the processing involves transmission of data over a network, to ensure Syngenta's compliance the Data Protection Legislation in accordance with Best Industry Practice ("**Security Measures**"). The Security Measures shall include (without limitation) back-up encryption, encryption of mobile media devices, and disaster recovery, and the technical and organizational measures as agreed in a SOW provided always that the measures implemented by the Supplier shall provide at least the same level of protection for the Personal Data as is provided for by Syngenta's internal corporate security, information security and data protection policies, procedures and codes of practice in force (and as updated) from time to time.
- 1.4.9 monitor the Security Measures (and compliance with them) and shall notify Syngenta immediately if it becomes aware of any unauthorised or unlawful processing, loss of, damage to, corruption or destruction of the Personal Data ("**Security Breach**").The Supplier shall co-operate with any Syngenta investigation of such Security Breach, restore such Personal Data and mitigate, remediate and otherwise respond to the Security Breach and associated risks as Syngenta requests and at the expense of the Supplier.
- 1.4.10 promptly upon request, the Supplier shall provide to Syngenta a summary of the Security Measures which it has in place in order to satisfy its obligations of this Exhibit.

- 1.4.11 If requested by Syngenta (such request to be made no more than once a year), an authorised representative of the Supplier shall certify to Syngenta that it has complied (and all of its sub-contractors who process the Personal Data have complied) with the terms of this Agreement, including (without limitation) the obligations contained in this Exhibit.
- 1.5 The Supplier shall (if permitted by law) promptly notify Syngenta if it receives any legally binding request for disclosure of Personal Data by a law enforcement authority.
- 1.6 For the purpose of this Exhibit in the event of any disagreement between the Parties as to whether the relevant Data Protection Legislation permits a transfer of Personal Data to another country or processing of Personal Data from another country, the decision of Syngenta shall be final.
- 1.7 Notwithstanding anything to the contrary in this Agreement, the Supplier may not authorise any third party or sub-contractor to process the Personal Data without the prior written consent of Syngenta.
- 1.8 The appointment of a sub-contractor in accordance with the terms of this Agreement shall not relieve the Supplier of liability in respect of or responsibility for the acts and omissions of such sub-contractor and the Supplier shall remain liable for such acts and omissions as if such acts and omissions were done by the Supplier.
- 1.9 The Supplier agrees to indemnify and keep indemnified Syngenta, its Affiliates and their Data Subjects against all losses, costs, claims, damages, fines, penalties or expenses (including reasonable lawyers' and experts' fees) directly or indirectly incurred by Syngenta (and its Affiliates and Data Subjects) or for which Syngenta (and its Affiliates and Data Subjects) may become liable due to any failure by the Supplier or its employees, agents or permitted sub-contractors to comply with any of its obligations under this Exhibit and any subsequent agreement entered into with Syngenta or any of its Affiliates relating to the processing of Personal Data. Notwithstanding anything to the contrary in this Agreement, no limitation of liability shall apply to this indemnity.
- 1.10 Upon termination of this Agreement and, specifically, any data processing services, the Supplier and any sub-contractors shall (at the choice of Syngenta) either return all the Personal Data processed by the Supplier or its sub-contractors and the copies thereof to Syngenta or shall destroy all the Personal Data and certify to Syngenta that it has done so (unless legislation imposed on the Supplier or its sub-contractors prevents it or them from returning or destroying all or part of the Personal data. In that case, the Supplier warrants that it will guarantee the confidentiality of the Personal Data and will not actively process the Personal Data after the termination of this Agreement.
- 1.11 The terms of this Exhibit shall survive the expiration or sooner termination of this Agreement, however arising.
- 1.12 A breach of this Exhibit shall be deemed to be a material breach of this Agreement incapable of remedy, entitling (but not obligating) Syngenta to terminate this Agreement with immediate effect.

Purchase Order 1100488971
Issued Date Mon, 23 Dec, 2024
Ordered By Jessadang Suksakit



Contact

101 อาคารโมบิลคอม 3
10120 กรุงเทพมหานคร
Thailand

Name บริษัท ร็อคเก็ต อินโนเวชั่น จำกัด

Supplier บริษัท ร็อคเก็ต อินโนเวชั่น จำกัด

Shipping Address

Syngenta Crop Protection Ltd. - Bangkok
25th Floor, Tower A, CW Tower, 90 Ratchadapisek Road, Huai
Khwang District
10310 Bangkok
Thailand

Billing Address

Syngenta Crop Protection Limited
25th Floor, Tower A, CW Tower, 90 Ratchadapisek Road, Huai
Khwang District
10310 Bangkok
Thailand

Deliver To Jessadang Suksakit

Payment Terms 45 days from date of invoice

ID

Net Amount	4,053,000.00 THB
Gross Amount	4,053,000.00 THB
Taxes	

Terms and Conditions

ใบสั่งซื้อฉบับนี้อยู่ภายใต้ข้อกำหนดและเงื่อนไขมาตรฐานจากประเทศในเครือของซินเจนทา (ตามที่ได้ระบุไว้ในใบสั่งซื้อฉบับนี้) ซึ่งมีอยู่ในแบบฟอร์ม <https://www.syngenta.com/company/supplier-terms-and-conditions>
หากคู่สัญญาใดตกลงกันเกี่ยวกับสัญญาในการจัดหาเป็นลายลักษณ์อักษร เช่น
เงื่อนไขของสัญญาในการจัดหาดังกล่าวจะอยู่เหนือข้อกำหนดและเงื่อนไขมาตรฐานของใบสั่งซื้อฉบับนี้

ซินเจนทามีความมุ่งมั่นที่จะดำเนินธุรกิจด้วยมาตรฐานสูงสุดทางจริยธรรมและความซื่อสัตย์ ท่านสามารถค้นหาเวอร์ชันฉบับเต็มรูปแบบได้ทางอินเทอร์เน็ต (<https://www.syngenta.com/en/company/supplier-terms-and-conditions/supplier-code-of-conduct>) โดยการยอมรับใบสั่งซื้อฉบับนี้
ข้าพเจ้ายืนยันว่าได้อ่าน ""การปฏิบัติตาม: คู่มือสำหรับบุคคลที่สาม"" ฉบับเต็มรวมถึงข้อกำหนดและเงื่อนไขมาตรฐาน
(ในกรณีที่ไม่มีกรลงนามในสัญญาในการจัดหา)

Syngenta Purchase Order number must appear on all packages, invoices, shipping papers and correspondence

This purchase order is subject to the standard terms and conditions from the respective country of the Syngenta affiliate (as mentioned in this purchase order), available under form:

<https://www.syngenta.com/company/supplier-terms-and-conditions>.

Should the parties have agreed on a supply agreement in writing, such terms of the supply agreement shall prevail on the standard terms and conditions of this purchase order.

Syngenta is committed to doing business with the highest possible standards of ethics and integrity. You can find the full version on the internet

(<https://www.syngenta.com/en/company/supplier-terms-and-conditions/supplier-code-of-conduct>). By accepting this purchase order, Supplier confirms having read the full version of ""Syngenta Supplier Code of Conduct"" as well as the standard terms and conditions (in case no supply agreement has been signed)."

Invoicing Terms And Conditions of Purchase

และนอกจากนี้แล้ว เรายังรับใบแจ้งหนี้ผ่านทางอีเมลหรือทางจดหมาย รายละเอียดเกี่ยวกับอีเมลหรือที่อยู่ทางไปรษณีย์มีอยู่ในพอร์ทัลของใบแจ้งหนี้ของเรา <https://www.syngenta.com/company/supplier-centre/invoicing>

โปรดตรวจสอบเพื่อให้แน่ใจว่ามีการใช้วิธีการส่งเพียงวิธีเดียวเท่านั้น เพื่อหลีกเลี่ยงการส่งใบแจ้งหนี้ซ้ำกัน

We accept invoices via email or mail, details regarding the respective email or postal address is available in our Invoice Portal <https://www.syngenta.com/company/supplier-centre/invoicing>.

Please ensure only one method of submission is used to avoid sending duplicate invoices

Line Item Details (2 Line Items)

Supplier Part Number	Quantity	Amount	Price	No.	Need-by Date	Description	Discount	Taxes	Charges
	1.00	465,000.00 THB	465,000.00 THB	1	Tue, 31 Dec, 2024	One Time Cost			
Unit of Measure each Full Description 45% upfront 45% after UAT 10% 2 months after go-live Extended Description									

Supplier Part Number	Quantity	Amount	Price	No.	Need-by Date	Description	Discount	Taxes	Charges
	1.00	3,588,000.00 THB	3,588,000.00 THB	2	Tue, 31 Dec, 2024	Software subscription			
Unit of Measure each Full Description (Omni Channel, Loyalty,Event Registration, Friend referral,"Snowflake" Data platform) 50% upon PO for month 1-6 50% at Month 6 for month 7-12 Extended Description									

Purchase Order 1200302590
Issued Date Mon, 23 Dec, 2024
Ordered By Jessadang Suksakit



Contact

101 อาคารโมบิลคอม 3
10120 กรุงเทพมหานคร
Thailand

Name บริษัท ร็อคเก็ต อินโนเวชั่น จำกัด

Supplier บริษัท ร็อคเก็ต อินโนเวชั่น จำกัด

Shipping Address

Jessadang Suksakit
Syngenta Crop Protection Limited
90 Tower A, CW Tower, Radchadapisek Rd,
Huai Khwang
10310 Bangkok
Thailand
Phone: +66 097-195-3535

Billing Address

SYNGENTA SEEDS (THAILAND) LIMITED
25th Floor, Tower A, CW Tower, 90 Ratchadapisek Road, Huai
Khwang District
10310 Bangkok
Thailand

Deliver To Jessadang Suksakit

Payment Terms Baseline date + 45 days

ID

Net Amount	2,652,000.00 THB
Gross Amount	2,652,000.00 THB
Taxes	

Terms and Conditions

ใบสั่งซื้อฉบับนี้อยู่ภายใต้ข้อกำหนดและเงื่อนไขมาตรฐานจากประเทศในเครือของซินเจนทา (ตามที่ระบุไว้ในใบสั่งซื้อฉบับนี้) ซึ่งมีอยู่ในแบบฟอร์ม <https://www.syngenta.com/company/supplier-terms-and-conditions>
หากคู่สัญญาใดตกลงกันเกี่ยวกับสัญญาในการจัดหาเป็นลายลักษณ์อักษร เช่น
เงื่อนไขของสัญญาในการจัดหาดังกล่าวจะอยู่เหนือข้อกำหนดและเงื่อนไขมาตรฐานของใบสั่งซื้อฉบับนี้

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Line Item Details (2 Line Items)

Supplier Part Number	Quantity	Amount	Price	No.	Need-by Date	Description	Discount	Taxes	Charges
	1.00	600,000.00 THB	600,000.00 THB	1	Wed, 1 Jan, 2025	Campaign Management / Campaign AW			
Unit of Measure each Full Description Campaign AW 24 EA @10,000 / EA Campaign Management 24 EA @ 15,000 /EA Monthly bill per actual Extended Description									
Supplier Part Number	Quantity	Amount	Price	No.	Need-by Date	Description	Discount	Taxes	Charges
	1.00	2,052,000.00 THB	2,052,000.00 THB	2	Wed, 1 Jan, 2025	Data services recurring			
Unit of Measure each Full Description Monthly bill - fix cost Extended Description									